VIET NAM NATIONAL UNIVERSITY HO CHI MINH CITY
UNIVERSITY OF ECONOMICS AND LAW

ROSA-LUXEMBURG STIFTUNG
SOUTHEAST ASIA HANOI OFFICE

INTERNATIONAL CONFERENCE ON FEMINISM, GENDER AND LAW (ICFGL) 2026

ABSTRACT PROCEEDINGS

18 SEPTEMBER 2026

University of Economics and Law, VNU-HCM
669 Do Muoi, Linh Xuan Ward, Ho Chi Minh City

ICFGL 2026 contributes to the UN Sustainable Development Goals through gender-responsive law-making, equal access to justice, inclusive legal education and international partnerships.



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PLENARY

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PLENARY SESSION

18 SEPTEMBER 2026

09:00–11:30

HO CHI MINH CITY, VIETNAM

CHALLENGES FOR FEMINIST LAW-MAKING

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Abstract

As the call for abstracts for this conference indicates, the terrain of feminist law-making is a multi-faceted and productive one, involving a range of themes and methodologies, both practical and imaginative. With the emergence of feminist law-making, a range of challenges have also emerged in the conceptualisation, implementation and maintenance of feminist-inspired laws and legal decisions. This paper will identify and analyse some of these challenges for feminist praxis. These include questions such as: How can feminist law-making include the diversity of women's lived experience? How can it manage differing feminist views? How can it maintain a critical feminist edge and avoid complicity with conservative or oppressive forces? Can it successfully combine transformative feminist content with conventional legal forms? How can it ensure feminist-inspired legal reforms are properly implemented? How should we respond to backsliding and backlash against feminist reforms? In discussing these various challenges, the paper will consider the value of imaginative approaches to feminist law-making in creating alternative feminist legal spaces which allow for experimentation and the affirmation of feminist political commitments.

"NOT AS IT WAS [IS] BUT AS IT MIGHT [CAN BE] HAVE BEEN": BACKCASTING AS FEMINIST

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Abstract

Backcasting is a process where a desired present/future - a world where feminist law-making occurs - is established by working backwards in time to consider what stages/forms/policies/values existed, but were not to chosen, that would have produced the desired outcome. Developed in 1982 as a form of energy policy analysis, backcasting requires us to reconsider the consequences of individual choices as well as patterns of choices over time. Backcasting's objective is to have real-world implications for how we consider the cumulative choices that have led us to the present while also supporting the potentialities of feminist legal worldbuilding to surface were other choices made. Using Ireland as an example, and a range of feminist legal worldbuilding techniques including critical feminist utopias, feminist legal prefiguration and (anti)hagiography, the paper considers how backcasting could be used to create a mirror universe where feminist law making is the norm rather than the exception. Backcasting does not generate definitive outcomes because of the variables and combinations that surface once feminist legal worldbuilding is undertaken. Instead, backcasting disrupts the narrative of the inevitability of the present and the future.

DRAFTING FEMINIST LEGISLATION: THE AUSTRALIAN EXPERIENCE

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Abstract

This paper asks what feminist legislation should be and whether it is possible to make feminist parliamentary laws. It draws from experiences leading the Australian Feminist Legislation Project (2024, with Kate Seear, Heli Askola and Jamie Walvisch). The project brought together academics, lawyers and activists across Australia to amend existing legislation and draft new legislation with the explicit aim of promoting the needs and rights of women, non-binary, gender diverse and transgender populations. A prefigurative law reform project at the nexus of academic work and activism, the authors positioned the project within feminist legal theory as an effort of 'sceptical pragmatism' (Armstrong 2004). Using this approach, feminists cautiously engage with the legal system, utilising its methods, languages and processes, to demonstrate how gender equality can be achieved through statutory reform.

This presentation sets out the aims of the Australian Feminist Legislation Project, the processes used to develop and frame the law reform contributions in the project, key ideas behind the project and lessons learned. It lays out the guiding principles and principles of feminist statutory drafting that emerged from the project. Ultimately, this presentation acknowledges the complexities and challenges of feminist law reform.

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ICFGL 2026 ABSTRACT PROCEEDINGS

01

SESSION 01

FEMINIST LAW-MAKING METHODS

18 SEPTEMBER 2026

HO CHI MINH CITY, VIETNAM

FROM IDEAS TO STATUTES: FRENCH FEMINIST THOUGHT AND THE RESHAPING OF VIETNAMESE LAW IN THE COLONIAL ERA

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Abstract

During the French colonial period in Vietnam (1858–1945), the legal status of women was shaped by an uneasy encounter between Confucian customary law, the feudal law of the Nguyễn dynasty, and the imported French civil-law tradition. This article analyses the transmission of French feminist thought into colonial Indochina, a process which gradually led to legal changes concerning women's rights. The article adopts an interdisciplinary approach combining three complementary layers of analysis. First, legal-historical analysis is employed to systematically examine the norms relating to women's rights in the key legal texts promulgated under colonial rule, together with the decrees and ordinances issued by the Governor-General of Indochina. Second, discourse analysis is applied to the press materials and the Vietnamese feminist movement - Nữ giới chung (1918), Phụ nữ tân văn (1929–1934), and Đàn bà mới (1934–1936) - in order to reconstruct how French feminist thought was received, translated, and transmitted within the colonial public sphere. Third, the comparative method is applied to juxtapose metropolitan and colonial law, thereby identifying both continuity and selectivity in the process of intellectual transmission and legal codification. On this basis, the article argues that French feminist thought produced not only visible statutory reforms but also a deeper "inconspicuous impact" by inscribing the very idea of women's rights into Vietnamese legal-political discourse. By recasting the colonial legal system as both an instrument of domination and an unintended vehicle of feminist legal modernization, the article contributes a non-Western case study to the feminist legal history from the 19th to 20th century.

Keywords: Feminist thought, French, women's right, transformation, colonial law, inconspicuous impact.

FROM STATE FEMINISM TO GRASSROOTS LEGAL CONSCIOUSNESS: FEMINIST LAW-MAKING AND GENDER EQUALITY IN CONTEMPORARY CHINA

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Abstract

This paper examines the possibilities and limitations of feminist law-making in contemporary China through the lens of gender equality legislation, digital feminist activism, and the evolving relationship between state law and grassroots legal consciousness. While feminist jurisprudence has often portrayed law as a patriarchal institution that reproduces structural inequality, recent developments in China demonstrate a more complex interaction between feminist advocacy, authoritarian governance, and legal reform. The paper argues that Chinese feminist actors increasingly engage in a form of "pragmatic feminist law-making" that operates both within and beyond formal legal institutions, thereby contributing to the gradual transformation of legal discourse on gender, labor, family, and violence.

The study focuses on three interrelated areas: the anti-domestic violence framework following the enactment of the Anti-Domestic Violence Law (2015), gender discrimination in employment and reproductive rights, and the rise of digital feminist mobilization surrounding sexual harassment and the #MeToo movement in China. Rather than evaluating feminist legal advocacy solely by immediate legislative outcomes, this paper highlights the "inconspicuous impact" of feminist interventions in reshaping public legal consciousness, judicial interpretation, and administrative governance. In doing so, it engages directly with Theme 1 of the conference concerning overlooked feminist influence on legal development.

At the same time, the paper addresses Theme 3 by critically assessing the limits of legal mobilization in a political environment where feminist activism faces institutional constraints and censorship. It argues that Chinese feminist actors adopt a form of "skeptical pragmatism": they strategically utilize existing legal language, state policy discourse, and administrative complaint mechanisms while remaining aware of the patriarchal and political boundaries embedded in the legal system. This strategy allows feminists to negotiate partial reforms without fully endorsing the legitimacy of existing structures.

Methodologically, the paper combines feminist legal theory with socio-legal analysis and draws upon legal texts, court cases, digital feminist campaigns, and policy debates in contemporary China. It further explores how feminist law-making can incorporate women's lived experiences into legal discourse in contexts where formal democratic participation remains limited. Ultimately, the paper contributes to broader debates on feminist DIY law-making by demonstrating how feminist legal

consciousness can emerge not only through formal legislative drafting, but also through everyday acts of interpretation, digital resistance, and grassroots legal engagement.

DEFERRED EQUALITY AND FEMINIST LAW-MAKING IN INDIA: WOMEN'S RESERVATION, PARLIAMENTARY EXCLUSION, AND GENDER DIVERSITY IN THE HIGHER JUDICIARY

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Abstract

India's constitutional promise of equality has repeatedly been carried forward through reformist language, yet women's presence in the institutions that make, interpret, and enforce law remains limited. The Women's Reservation Act, 2023, marked an important constitutional moment by promising one-third reservation for women in the Lok Sabha and State Legislative Assemblies.However, the continuing uncertainty around its implementation, including the recent failure of the proposed constitutional amendment, reveals a familiar pattern: equality is formally recognised, but institutionally deferred. At the same time, women remain seriously underrepresented in the higher judiciary. Official data shows that, as of 02.02.2026, the Supreme Court had only one-woman judge, while the High Courts together had 116 women judges out of 814 working judges. This paper examines the connected exclusion of women from parliamentary law-making and higher judicial decision-making in India. Drawing on feminist legal theory, feminist constitutionalism, and the distinction between descriptive and substantive representation, it asks whether constitutional democracy can claim transformative equality when women remain marginal in both the legislature and the constitutional courts. The study adopts a doctrinal and socio-legal methodology, analysing constitutional provisions, the Women's Reservation Act, parliamentary developments, judicial appointment data, and feminist scholarship on law-making and judging. It also engages with the conference theme of feminist law-making and judgments by treating representation not merely as numerical inclusion, but as a condition for reshaping legal reasoning, institutional legitimacy, and democratic accountability. The paper finds that India's current model produces a gap between constitutional symbolism and institutional practice. Women's reservation without timely implementation weakens feminist law-making, while gender imbalance in the higher judiciary narrows the possibility of feminist judging. The paper argues that feminist constitutionalism requires synchronised reform across Parliament and the judiciary, so that women are not only subjects of law, but active authors and interpreters of constitutional justice.

Keywords: Feminist Law-Making; Women's Reservation; Parliamentary Exclusion; Gender Diversity; Higher Judiciary; Feminist Constitutionalism; India.

CAN LAW REFORM LISTEN WITH A FEMINIST EAR? LAW REFORM AND THE FUTURE OF FEMINIST LAWMAKING

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Abstract

How do institutional law reform processes listen to women's voices? Can listening with a feminist ear in law reform influence feminist lawmaking?

In this paper we present findings from our investigation of listening practices in current Australian institutional law reform and policy development processes addressing violence against women. Drawing on research conducted through our Australian Research Council Discovery Project 'Women, Listening and Law Reform', we argue that choices in the design of law reform can increase the authority and visibility of women's voices in law reform, but do not guarantee that they will influence recommendations or contribute to feminist lawmaking. We suggest instead that institutional law reform must attend to the listening process beyond voice, and specifically to listening with a feminist ear, to form a foundation for feminist lawmaking.

Our project investigates institutional law reform processes – such as law reform commissions, parliamentary inquiries and Royal Commissions – as both a facet of, and a precursor to, formal lawmaking, with a specific focus on violence against women. We explore how such processes elicit women's voices, particularly the voices of victim-survivors and diverse women with lived experience, and ask whether and how law reform institutions adopting feminist-informed listening practices can lead to more effective feminist lawmaking.

This paper will present findings from our investigation of recent institutional law reform processes. We have identified significant variation in approaches to eliciting women's voices, including embedding lived experience through advisory committees, partnerships with advocacy organisations and engaging women with lived experience through written submissions, roundtables and public hearings. Our research reveals that although these design choices can increase the visibility of women's voices in law reform, they do not guarantee that their voices will be listened to in ways that influence institutional methods and frameworks.

Drawing on Sara Ahmed's theorisation of the feminist ear, we argue that law reform institutions must attend to their own listening practices and conceptualise listening as response-ability before women's voices can contribute meaningfully to transformative change. Law reform must develop strategies for listening that dismantle colonial and gendered hierarchies, that listen for silence and for what is not and cannot be said, and that are prepared to challenge the patriarchal assumptions that underpin the legal status quo.

Our paper will present key criteria for listening with a feminist ear in law reform. These criteria will underpin the development of a model for listening with a feminist ear in Phase 2 of our project, in which we will engage with prefigurative methodologies to workshop whether and how listening with a feminist ear can lead to transformative change through feminist lawmaking.

FIGHTING FIRE WITH FIRE: HOW FEMALE STUDENTS USE SYMBOLIC POWER TO FIGHT PREDATOR PROFESSORS IN CHINA

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Abstract

Sexual harassment (hereafter SH) routinely appears in news reports about higher education in China, but there is a dearth of academic research on the topic. SH refers to the constellation of behaviors ranging from degrading remarks and unwanted sexual advances to violent sexual assault. This article applied Bourdieu's concepts of symbolic power entwined with different forms of capitals to explore how students reacted to SH and upended the balance of power by pushing for action against the perpetrators. Forty-one students who spoke out about experiencing SH were interviewed between April 2021 and March 2024 from Beijing and Hong Kong. More capitals to counter and combust symbolic power can highlight how different forms of capitals are fluid, context-dependent, and influenced by global hierarchies and students' empowerment. These findings can help foster institutional changes such as implementing policies to increase student sensitivity and awareness about SH.

SH is defined as undesired verbal or physical sexual conduct, sexual intimidation, and gender discrimination through objectification and exclusion (MacKinnon 2020). It signifies the undesired enforcement of sexual prerequisites within the framework of unequal power relationships. The fundamental characteristic of SH is enforced subordination within a sexualized social hierarchy. It encompasses 'status, regard, reward, dignity, and power,' and infringes women's human rights (MacKinnon 2020).

Questions regarding SH in higher education continue about its nature, its prevalence, its activities, the harm done to students, and more. The SH literature focuses on the workplace (Liu et al., 2014), general perceptions about SH, mental health, and the psychological well-being of those experiencing it (Philpart et al., 2009). Research on SH in China is limited due to cultural taboos about openly talking about sex, especially in higher education. The literature about professors in China who engage in SH note that power, patriarchy, and fantasy are relevant themes (Zeng, 2020).

Symbolic power, as discussed by Bourdieu (1998) and Byron & Roscigno (2014), is exerted among individuals and groups within hierarchies that marginalize others ideologically and operationally. This form of power influences perceptions, beliefs, and social structures by recognizing one's various capitals. Economic capital, including monetary assets and property, underpins this power by enhancing life satisfaction. Social capital comprises intangible assets like social status and networks, thereby elevating individual honour. Cultural capital involves high-status tastes and knowledge, facilitating societal acceptance. Symbolic capital involves symbols and rituals to capitalize bargaining

power (Bourdieu, 1998). Students strategically navigate symbolic power dynamics to challenge and resist established educational hierarchies in China's higher education system. They also leverage their own capitals to enhance their bargaining power.

Three common types of SH are (1) gender-based harassment (verbal and nonverbal behaviours that convey hostility, objectification, exclusion, or second-class status to a gender); (2) unwanted sexual attention (unwelcome verbal or physical sexual advances, including assault); and (3) sexual coercion (when favourable professional or educational treatment is conditional on sexual activity). SH herein includes physical assaults, but more commonly, SH is prefaced by psychological and/or verbal assaults.

FROM CARE TO CO-DESIGN: WOMEN'S ACTIVISM AS FEMINIST LAW-MAKING IN THAI ENVIRONMENTAL GOVERNANCE

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Abstract

Feminist law-making has been described as a shift from critiquing law to actively reshaping how legal processes are designed and practiced. This paper examines how such a shift is already taking place from below, through women's activism in environmental governance in Thailand. Drawing on empirical research from the Chana industrial estate conflict in Songkhla Province, it shows how local women have moved beyond being excluded participants to becoming active producers of knowledge and agents of legal transformation.

In the Chana case, dissatisfaction with conventional Environmental Impact Assessment (EIA) processes, which many community members perceived as limiting meaningful participation, contributed to the emergence of the #SaveChana movement. Women played a central role in developing alternative forms of participation through community-led environmental data collection, collaboration with academics, and the creation of informal deliberative spaces. These knowledge-production efforts evolved alongside the Strategic Environmental Assessment (SEA) process, allowing local evidence and perspectives to enter broader discussions about the region's development future. Participation therefore became not only a procedural requirement but also a collective process of inquiry, knowledge production, and democratic engagement.

Crucially, this activism is grounded in what can be understood as a feminist politics of care. Women frame environmental protection as a responsibility toward children, livelihoods, and future generations, linking ecological preservation with moral and social obligations. This care-based approach informs how environmental issues are interpreted and articulated, while also challenging both technocratic governance structures and patriarchal norms that continue to restrict women's formal participation.

The paper argues that these practices constitute a form of feminist law-making in action. Rather than waiting for institutional reform, women are already reshaping how knowledge is produced, how participation is organized, and how decisions are understood. Building on these insights, the paper suggests that environmental law should move toward models of co-design that formalize community-generated knowledge, support shared fact-finding, and recognize care-based reasoning as a legitimate basis for decision-making.

By foregrounding women's lived practices, this paper contributes to feminist law-making debates by demonstrating how legal transformation can emerge from grounded, everyday forms of engagement, particularly in contexts where formal institutions remain limited in their inclusiveness.

FEMINIST LAW-MAKING OUTSIDE INSTITUTIONS: A DOMESTIC WORKERS' UNION AND ITS WOMEN'S COURT IN INDIA

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Abstract

The over-representation of the marginalised in the registers of criminality has been a central feature of modern-day criminal justice systems. This feature, rather an anomaly, has been highlighted by countless academics, public intellectuals, and even state institutions such as India's National Crime Records Bureau. This paper presents the case of a domestic women workers' union, the Gharelu Mahila Kamgar Union (GMKU), located in Kanpur, a city in Central India, which has undertaken not only to mend but also to bypass and trespass the state's criminal-juridical matrix. For the last 20 years, the Union has run a Mahila Adalat (Women's Court) to adjudicate and resolve complex issues in the localities where its members reside.

This paper examines the Union and its Mahila Adalat to highlight a popular attempt to address the system's brokenness by "taking things into their own hands" and offering solutions that fall outside traditional theories of justice and punishment. The approach does much more than solve immediate and localised issues. This method of hearing and deliberating to reach a workable solution then forms the mortar for the cohesion of the community and the union. Thus, situating the functioning of the Women's Court within the broader theoretical trope of abolitionist feminism, the paper also highlights the positive potential of abolition.

The functioning of the Union not only gives discursive inputs but shows that feminist law-making does not necessarily involve waiting for the government to change the law: participants write legal texts and judgments "as if" women's voices and equality were fully respected (Hunter, 2010). However, this law-making is not always institutionalised, and feminist labour unions tend to bypass the criminal-juridical matrix. This bypass is not ensured solely through petitioning and protest, which have been labelled as deconstruction mechanisms. These deconstruction practices are combined with construction practices, which show how abolition feminism provides a positive ecology that leads to difference rather than the "absence" of the Prison Industrial Complex.

These courts, Mahila Adalats, not only push for a feminist law-making but also redefine the imaginary of a feminist legal system which would be radically different from the patriarchal systems based on adversarial litigation, grammatological justice — an approach to justice that privileges written record and textual proof over lived testimony — and incarcerating the marginalised. The Mahila Adalat and the GMKU work for labour and gender justice without hyphenating the two and locate both within a single feminist ecology.

BEYOND THE RIGHT VALUES: A PRAGMATIC FEMINIST REORIENTATION OF CHILD MARRIAGE PREVENTION LAW IN INDONESIA

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Abstract

Efforts to prevent child marriage in Indonesia increasingly rely on moralistic regulations and programmes aimed at controlling its perceived main driver: adolescent sexual agency exercised outside social sanction. As a result, they prioritise abstinence-based approaches that discipline adolescent sexuality. This disciplining logic is particularly directed at girls, who are constructed as guardians of chastity and social order. Such moralised approaches fail to engage adequately with the lived agency surrounding child marriage.

Drawing on interviews with lawmakers and village community members, this paper examines two pathways through which moralised and abstinence-centred approaches are negotiated. First, it highlights discretionary practices at the village level that challenge patriarchal norms in child marriage prevention. These forms of discretion function as alternative value-generating mechanisms that emerge through informal deliberative spaces, enabling the recognition of, and engagement with, adolescents' sexual agency. However, they remain fragile, as actors, particularly in the health sector, often fear legal, administrative, or moral sanctions under dominant moralistic frameworks. Second, from a top-down mechanism, the state has sought to impose new values through global frameworks such as comprehensive sexuality education. Beyond resistance from conservative political groups, these frameworks are shown to risk undermining existing discretionary and deliberative practices at the village level. This occurs through prescribed framings and pedagogical standards that can displace locally generated ways of engaging with adolescent sexuality.

Mobilising a sceptical, pragmatic feminist approach to law-making, this paper argues that, rather than imposing new values on sexuality education, state law should function as a guarantor of the sustainability of these discretionary practices. It should also establish minimum ethical standards for engaging with adolescents' sexual agency, including non-shaming, non-judgemental interaction and confidentiality. This approach allows regulation to operate flexibly. In conservative village settings, such standards function to prevent harm. In more bureaucratised or business-as-usual village settings, they serve to promote at least a minimum level of ethical practice.

The paper contributes to feminist legal scholarship in three ways: first, by repositioning community-level practices that unsettle patriarchal governance of child marriage as sources of feminist legal reform; second, by conceptualising state law as enabling and protective rather than value-prescriptive; and third, by challenging narrow assumptions about who counts as feminist legal actors and what constitutes feminist legal spaces, highlighting the role of intermediary agents, such as village health

workers and family welfare cadres, and informal deliberative arenas in advancing feminist transformation.

JUDGING GIRLHOOD: FEMINIST JUDICIAL REASONING IN CHILD MARRIAGE DISPENSATION CASES IN INDONESIA

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Abstract

Child marriage remains a persistent socio-legal challenge in Indonesia despite the enactment of Law No. 16 of 2019, which raised the minimum legal age of marriage to nineteen years old. Although the reform strengthened child protection and gender equality, the marriage dispensation mechanism continues to allow underage marriages through judicial approval. This places judges at the center of decision-making concerning children's rights, morality, religion, and family interests. Judges therefore play a significant role in determining the boundaries between protection and permissibility in child marriage cases.

While the legal framework governing marriage dispensation appears gender-neutral, judicial reasoning often reflects assumptions about girls' sexuality, family honor, morality, and social order. Pregnancy, social stigma, religious norms, and concerns about family reputation are frequently treated as "urgent reasons" justifying marriage dispensation. Consequently, courts may reproduce patriarchal understandings of femininity and reinforce legal control over girls' bodies and futures. This paper examines how judges construct legal reasoning in child marriage dispensation cases and explores whether judicial discretion reproduces patriarchal legal structures or creates opportunities for feminist judicial reasoning. The analysis draws on feminist jurisprudence, feminist law-making, and feminist judging scholarship, particularly the works of Catharine MacKinnon, Carol Smart, and Rosemary Hunter. Feminist legal scholarship argues that law is embedded within social relations of power that shape gendered experiences and identities. Judicial reasoning is therefore examined as a site where gender norms are constructed, negotiated, and reproduced. Methodologically, the study employs a qualitative socio-legal approach combining comparative analysis of court decisions with in-depth interviews with judges who have handled child marriage dispensation cases. By comparing granted and rejected applications, the study identifies patterns of legal interpretation, moral justification, and the application of child protection principles. It further examines whether girls are positioned as rights-bearing legal subjects entitled to protection or as moral objects whose sexuality must be regulated through marriage. The study argues that judicial discretion functions as a form of implicit law-making. Preliminary findings indicate that pregnancy, social stigma, and moral concerns frequently legitimize patriarchal control over girls' lives. However, some decisions demonstrate emerging feminist judicial reasoning by prioritizing education, psychological wellbeing, bodily autonomy, and the long-term interests of girls. The paper contributes to debates on feminist law-making and feminist judging by showing how courts become contested spaces where gendered legality is reproduced, negotiated, and potentially transformed through everyday judicial practice.

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ICFGL 2026 ABSTRACT PROCEEDINGS

02

SESSION 02

FAMILY, MARRIAGE, INHERITANCE AND PROPERTY

18 SEPTEMBER 2026

HO CHI MINH CITY, VIETNAM

HOW FEMINIST IS VIETNAM'S INHERITANCE LAW? REVISITING THE PUBLIC-PRIVATE DIVIDE IN INHERITANCE DISPUTES

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Abstract

This paper investigates how feminist Vietnamese inheritance law is when patriarchal tradition continues to influence inheritance practices and judicial resolution of inheritance disputes. Drawing on socio-legal analysis and empirical findings, the paper argues that the state recognition of equal inheritance rights has not dismantled the gendered power structures embedded within family and kinship relations.

Shaped by historical circumstances, the Vietnamese state adopted gender-neutral rules of succession to support its broader socio-economic goals. Official discourse often presents inheritance law as proof of socialist equality and women's emancipation according to which daughters and sons are legally entitled to equal shares of inheritance. Yet inheritance disputes expose an ongoing gap between formal legal equality and customary norms grounded in Confucian patrilineal traditions. As a result, courts often accommodate these social norms when resolving inheritance disputes.

The paper critiques the traditional separation between the "private" family sphere and the "public" domain of state law. It argues that Vietnamese inheritance law illustrates how gender inequality is reproduced through the legal system's deference to supposedly private cultural norms. Rather than transforming patriarchal inheritance structures, courts often mediate between state law and customary expectations in ways that preserve male privilege. The paper further argues that the Vietnamese experience complicates liberal feminist assumptions that formal equality alone can produce substantive gender justice.

The paper contributes to feminist jurisprudence by providing an empirical account of how inheritance disputes become sites of negotiation between law, kinship, and gendered social expectations. In addition, it highlights the limitations of reform in contexts where customs continue to possess normative authority. In doing so, the paper situates Vietnamese inheritance law within broader feminist debates concerning property, care, tradition, and the continuing instability of the public-private divide.

REWRITING INHERITANCE LAW FROM A FEMINIST PERSPECTIVE: WOMEN'S LAND CLAIMS AND LEGAL RECOGNITION IN VIETNAM

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Abstract

Vietnamese inheritance law formally regulates succession on the basis of equal rights among daughters, sons, spouses and parents. Yet disputes over inherited land-use rights reveal a gap between formal entitlement and legal recognition. Before a claim reaches a court, family negotiation, grassroots mediation practices and documentary requirements often shape the legal force of women's claims. Daughters, widows and sisters may confront patrilineal expectations, pressure to preserve family harmony, informal settlements and incomplete land documents. The central issue is not whether women hold inheritance rights, but how law makes their claims visible, credible and enforceable.

This paper asks how Vietnamese inheritance law should be rewritten so that women's claims to land-use rights operate as enforceable legal claims, not as family matters resolved through deference or compromise. It combines feminist doctrinal analysis with feminist law-writing. The paper identifies four points at which women's claims often weaken: family settlements before litigation, proof of contribution to family land, reliance on incomplete or male-centred documents, and pressure to yield land to male relatives.

The paper argues that feminist inheritance reform must move beyond formal equality and revise the legal tests that determine whether women's land claims are recognised. Equal inheritance shares matter, but they do not settle the legal questions of consent, contribution, evidence and agency in disputes over land-use rights. The paper proposes four drafting principles. First, inheritance law should make care, maintenance and long-term contribution to family land legally relevant. Second, courts and mediating bodies should test whether settlements reflect genuine consent or gendered pressure. Third, evidentiary rules should allow proof through care, residence, cultivation, maintenance and family responsibility, not documents alone. Fourth, procedures should frame daughters, widows and sisters as legal agents asserting rights, not as women disrupting family harmony.

The paper contributes to feminist law-making scholarship by applying feminist law-writing to inheritance and land-use rights in Vietnam's socialist, state-managed land regime. It moves feminist law-writing beyond court-centred and liberal property frameworks by showing how property and succession rules can be rewritten around consent, contribution, evidence and legal agency. The Vietnamese case situates feminist law-making within debates on gender, land, kinship and legal pluralism in the Global South, and offers a doctrinal model for feminist inheritance reform.

RETHINKING WOMEN'S INHERITANCE RIGHTS IN VIETNAM: LAW, GENDER, AND THE DYNAMICS OF LEGAL CHANGE

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Abstract

This article examines the transformation of women's inheritance rights in Vietnam from the premodern period to the present, situating legal change within broader shifts in gender, kinship, and property relations. Drawing on foundational legal sources, including the Hong Duc Code (Quốc triều hình luật) and the Gia Long Code (Hoàng Việt luật lệ), it argues that premodern Vietnamese law neither excluded women entirely from inheritance nor recognised them as fully autonomous legal subjects. Rather, women's entitlements were relational and contextually bounded within Confucian patriarchal structures that prioritised lineage continuity, moral obligation, and ancestral worship.

Adopting a socio-legal and diachronic approach, the article traces how these historically embedded entitlements have been reconfigured under modern legal frameworks, particularly through the Civil Code 2015 and contemporary judicial practice. It shows that legal modernisation has not produced a uniform trajectory of gender equality, but has instead generated differentiated patterns in the recognition and realisation of women's inheritance rights. These patterns are shaped through multiple mechanisms of legal change, including judicial interpretation, legal categorisation, and the continued influence of customary and moral norms.

By conceptualising women's inheritance rights as historically layered and socially mediated, the article challenges linear narratives of legal progress. It demonstrates that formal legal recognition does not necessarily dismantle gender hierarchy, but may reconfigure it in new forms. The study contributes to broader debates on gender, law, and legal modernity in Asia by offering an account of legal hybridity grounded in processes of differentiation, negotiation, and selective realisation.

VALUING NON-FINANCIAL CONTRIBUTIONS IN MARITAL PROPERTY DIVISION: A COMPARATIVE STUDY OF AUSTRALIAN AND SINGAPOREAN LAW AND IMPLICATIONS FOR VIETNAM

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Abstract

In the sociocultural context of Vietnam, entrenched patriarchal norms continue to assign women primary responsibility for domestic caregiving, often leading them to forgo participation in income-generating activities in order to support their spouses' economic roles. Although the Law on Marriage and Family 2014 and Joint Circular No. 01/2016/TTLT-TANDTC-VKSNDTC-BTP formally recognize domestic labor as an income-equivalent contribution to marital property, judicial practice reveals persistent inconsistencies in its application. In particular, the absence of a structured and quantifiable framework for assessing non-financial contributions has resulted in an "inconspicuous bias," whereby homemaking spouses-typically wives-are frequently evaluated as having made lesser contributions than their income-earning counterparts. This gap between formal legal recognition and practical implementation raises significant concerns regarding substantive equality and post-divorce economic security for women.

Drawing upon feminist jurisprudence, this paper critically interrogates the valuation of women's contributions through domestic care work within the marital property regime. It argues that the prevailing approach in Vietnam reflects a form of formal equality that fails to adequately capture the economic and social value of unpaid care work, thereby perpetuating structural gender inequalities. To address this issue, the study adopts a comparative legal methodology, examining the frameworks of Australia and Singapore. These jurisdictions are selected due to their relatively advanced and nuanced approaches to recognizing both financial and non-financial contributions in marital property division. The analysis focuses on the criteria used to assess contribution levels in cases involving full-time homemakers, including the consideration of indirect contributions and caregiving roles, as well as the duration and intensity of domestic labor.

Building on this comparative analysis, the paper proposes a structured and evidence-based framework designed to constrain excessive judicial discretion, enhance consistency, transparency, and fairness in marital property division, and ensure that non-financial contributions-particularly domestic care work-are systematically and equitably valued alongside financial inputs.

The findings of this study provide a normative and practical foundation for reforming Vietnamese legislation and judicial practice. Specifically, the paper recommends the incorporation of clearer evaluative criteria and guiding principles for courts, with an emphasis on recognizing domestic labor as a substantive economic contribution. Such reforms are essential not only to achieving equitable

outcomes in marital property disputes but also to safeguarding women's substantive rights and mitigating their economic vulnerability in the aftermath of divorce.

RECOGNIZING WOMEN'S ECONOMIC CONTRIBUTIONS IN THE DIVISION OF MARITAL PROPERTY UPON DIVORCE: A FEMINIST LEGAL ANALYSIS OF A VIETNAMESE COURT JUDGMENT

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Abstract

Economic capacity plays a significant role in shaping the gendered status of both men and women. However, in the context of socio-economic development, women have increasingly demonstrated their distinct capabilities, which warrant full and equitable recognition. In practice, women's participation in the labor market and their economic contributions to the family have grown substantially. Alongside income-generating activities, women continue to assume primary responsibility for childcare and the organization of family life. Even in cases where women do not directly produce material wealth, their roles in domestic work and family care should be acknowledged as a form of indirect economic contribution. By maintaining a stable household environment, they enable other family members - particularly their husbands - to concentrate on and maximize their productive capacities in the public sphere, thereby indirectly contributing to the generation of shared material wealth. This perspective reflects a fair and reasonable approach, as, in the absence of such domestic contributions, the husband's time resources and labor productivity would be significantly divided and diminished. Accordingly, the role of women within both the family and society is indispensable and should not be underestimated. The case selected by the authors for presentation and analysis concerns the recognition and evaluation of gender factors in judicial decision-making. Specifically, the first-instance judgment applied existing legal provisions on the division of marital property upon divorce in a manner that remained rigid and somewhat one-dimensional, as it failed to adequately consider gender-related aspects. These include the nature and extent of contributions to the marital property, as well as the gender-specific characteristics associated with women's roles - particularly their psychological dimensions and responsibilities as mothers and wives. This issue has not yet received comprehensive and thorough attention from competent authorities or from society at large. By employing feminist legal theory in conjunction with doctrinal legal analysis and synthesis methods, this article evaluates the court's decision with respect to the key issues of the case, offering critical observations, assessments, and conclusions.

FROM RECOGNITION TO REDISTRIBUTION: ADDRESSING THE ABSENCE OF MATRIMONIAL PROPERTY RIGHTS FOR UNPAID CARE WORK IN INDIA

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Abstract

Marriage is an economic partnership characterised by differentiated but jointly productive forms of labour. Despite growing judicial and scholarly recognition of unpaid care work as economically valuable labour, Indian matrimonial law continues to deny proprietary entitlement to non-financial contributions within marriage. Women in marriages make substantial non-financial contributions through unpaid labour, enabling economic growth for the family as a unit and sustaining social reproduction, often at significant professional and economic cost to themselves. At the point of exit from a marriage, however, women are left without ownership claims or proprietary rights over assets generated during the course of the relationship, except through maintenance, gifts, or inheritance.

Under inheritance law, Hindu wives do not enjoy coparcenary rights in the ancestral property of the husband's family and can claim only as an heir on the death of the husband. Consequently, the principal financial protection available to women upon dissolution of marriage remains maintenance or alimony. Indian maintenance law is structured around dependency and subsistence rather than redistribution of jointly created marital wealth. Fragmented in implementation, it conceptualises women as dependants entitled to support rather than as equal economic partners in wealth accumulation. Multiple Indian courts have increasingly recognised the economic value of unpaid domestic labour undertaken by women, while findings from the 2024 Time Use Survey highlight the disproportionate burden of unpaid domestic work borne by women. Recognition without proprietary redistribution, however, remains incomplete.

India does not have a statutorily recognised system for the division of matrimonial property. By and large it follows the United Kingdom's separation of property regime, meaning that on dissolution of the relationship all assets are divided according to title, through adjudication in court. This paper argues that in order to give appropriate recognition to non-financial contributions made to a marriage through unpaid domestic labour, India must not only establish a matrimonial property regime but also move towards a partial community of property regime, as recognised in multiple jurisdictions around the world. A partial community of property regime treats all assets acquired during the course of marriage as part of a common pool, subject to some exceptions, to be divided between the parties in the event of dissolution. While jurisdictions such as South Africa follow accrual-based equalisation systems, others such as France recognise forms of community property involving equal division of marital acquisitions.

The paper combines doctrinal analysis of Indian matrimonial and inheritance law with comparative examination of matrimonial property regimes in South Africa, France, Germany, and the United Kingdom, alongside engagement with feminist legal-economic scholarship on unpaid care work. On

the basis of this analysis, it recommends that a partial community of property regime be recognised under India's Special Marriage Act, with concomitant amendments to the Indian Succession Act. India's community of property regime must be specific to context and incorporate elements such as stridhan and mehr.

WRITING COHABITATION CONTRACTS AS FEMINIST LAW: A LEGISLATIVE DESIGN FOR VIETNAMESE FAMILY LAW

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What if the problem is not that the law fails to recognize cohabitation, but that it recognizes it in ways that remain structurally blind to women's lived realities?

This paper engages directly with feminist law-making as a practice of writing law by proposing a legislative design for cohabitation contracts in Vietnamese family law. Rather than asking whether non-marital cohabitation should be legally recognized, the paper addresses a more pressing question: how should such recognition be written into law so that it does not reproduce the very inequalities it seeks to regulate?

Vietnamese law currently adopts a dual approach to cohabitation. While denying spousal status to unmarried partners, the Law on Marriage and Family 2014 nonetheless governs its consequences. Notably, Article 16(2) requires that property settlements ensure the lawful rights and interests of women and children, and recognizes unpaid domestic and care work as income-generating labor. This provision constitutes a significant normative foothold. However, it operates primarily as an ex post corrective mechanism and remains fragmented, leaving the structure of the relationship itself largely unregulated.

Building on this internal legal foundation and informed by a comparative reading of the French PACS, the paper develops a feminist law-writing proposal for a cohabitation contract regime in Vietnam. It advances a drafting model structured around five core provisions: (1) an inclusive definition open to all adult couples regardless of gender; (2) conditions of validity combining contractual autonomy with public-order limits; (3) mandatory registration and publicity to ensure legal certainty; (4) a dual-layer regime of rights and obligations, combining freedom of agreement with non-derogable protections, including the recognition and redistribution of care work; and (5) flexible termination rules that nonetheless safeguard housing stability, caregiving contributions, and the interests of children.

The central claim is that cohabitation contracts must not be drafted as neutral private agreements. Instead, they should function as hybrid legal institutions that embed the valuation of unpaid care work, constrain unequal bargaining power, and transform existing fragmented protections into a coherent

feminist legal framework. By translating feminist critique into legislative technique, the paper demonstrates how law can be written not only to resolve inequality after the fact, but to actively reshape the conditions under which intimate relationships are lived.

Keywords: cohabitation contract; feminist law-writing; legislative design; Vietnamese family law; unpaid care work.

THE PRIVATE IS POLITICAL, BUT THE LAW IS NOT: RETHINKING THE PUBLIC/PRIVATE DIVIDE IN VIETNAMESE AND NEPALI LEGAL FRAMEWORKS THROUGH FEMINIST LAW-MAKING

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Abstract

The public/private dichotomy remains one of the most enduring structural barriers to gender justice in both Vietnam and Nepal. By confining domestic labour, intimate partner violence, and family relations to the "private" sphere, law has historically rendered these domains invisible, beyond the reach of rights, remedy, and redistribution. This paper argues that feminist law-making offers a transformative methodology to dismantle this divide and revalue the private sphere in both jurisdictions, drawing on a comparative feminist legal analysis grounded in the works of Simone de Beauvoir, Carol Pateman, Martha Fineman, Angela Davis, and bell hooks.

Building on de Beauvoir's foundational insight that woman is constructed as the "Other"; relegated to immanence and domesticity while men occupy the transcendent public world, this paper interrogates how Vietnamese and Nepali legal systems have codified and reproduced this subordination. Carol Pateman's critique of the sexual contract reveals how the public/private split is not a neutral legal boundary but a gendered political construction that legitimises patriarchal authority within the home. Martha Fineman's vulnerability theory further destabilises the liberal legal subject, exposing how the law's refusal to recognise dependency and care work perpetuates the economic marginalisation of women in both contexts.

Through analysis of Vietnamese family law, labour legislation, and domestic violence frameworks alongside Nepal's Domestic Violence (Crime and Punishment) Act 2009 and Civil Code provisions, this paper demonstrates how formal gender-neutral language masks substantive inequality. Angela Davis's intersectional critique foregrounds how class and ethnicity compound the private/public exclusion for ethnic minority women in Vietnam's Central Highlands and Nepal's Madhesi and Dalit communities. bell hooks's emphasis on the politics of domination and love as a site of resistance further enriches the analysis by centring lived experience as a legal resource.

This paper proposes that feminist law-making through rewritten legislative drafts, prefigurative law reform, and feminist judgment methodology can reconceptualise domestic labour as economically cognisable work, reframe intimate violence as a structural rather than personal failure, and redesign family law to reflect equitable distribution of care. Rather than accommodating women within existing patriarchal frameworks, this paper envisions a feminist rewriting of the private sphere itself as a site of rights, dignity, and redistributive justice.

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ICFGL 2026 ABSTRACT PROCEEDINGS

03

SESSION 03

GENDER-BASED VIOLENCE, CRIMINAL JUSTICE AND REDRESS

18 SEPTEMBER 2026

HO CHI MINH CITY, VIETNAM

VIOLENCE WITHIN NARRATIVES: A FEMINIST CRITICAL DISCOURSE ANALYSIS OF PHILIPPINE SUPREME COURT DECISIONS ON RAPE AND SEXUAL ASSAULT

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Abstract

This paper examines Philippine Supreme Court (SC) jurisprudence on rape and sexual assault, focusing on how judicial narratives frame women's credibility and morality that establishes a construct of an "ideal victim."

Grounded in Philippine feminist legal studies and drawing on Susan Brownmiller's "rape culture" scholarship, this paper argues that judicial discourse does not merely adjudicate violence but actively participates in shaping social and legal understandings of sexual violence against women. Utilizing Michelle Lazar's Feminist Critical Discourse Analysis (FCDA), the paper analyzes recurring linguistic, rhetorical, and narratological patterns within selected SC decisions to examine how legal language may reinforce or challenge patriarchal constructions of sexual violence.

Building on Amparita Sta. Maria's assessment of SC compliance with the Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW) from 2010-2017, this paper shifts attention from doctrinal adherence toward the discursive and rhetorical dimensions of judicial decision-making, with particular attention to more recent decisions and landmark cases on intimate partner violence (IPV), statutory rape, and rape by sexual assault.

The amended rape law in the Philippines redefined the crime by placing greater focus on the act as a violation of an individual's bodily integrity, rather than as an affront to their honor. Despite such reforms, the legal definition of rape continues to present its core issue: it does not explicitly define rape as sexual intercourse without consent. While nonconsensual sex is implied as punishable, the law effectively narrows how lack of consent may be established by specifying contexts and circumstances. As a result, prosecutors are required to prove at least one of the enumerated conditions in the Revised Penal Code (RPC) to establish the commission of rape or/by sexual assault, which leads to subsequent arguments from the defense and, by extension, SC decisions that perpetuate prejudiced lexical choices, descriptions of complainants' behavior, representations of trauma, and assessments of credibility.

Interrogating the logic and rhetoric of narratives within legal reasoning, this paper demonstrates how legal discourse participates in producing normative expectations surrounding victimhood and sexual violence within Philippine legal contexts. It contends that feminist legal critique must extend beyond statutory reform toward examining how patriarchal ideologies persist through narrative structures and epistemological assumptions embedded into judicial texts themselves.

RECOGNISING THE UNRECOGNISED: FEMICIDE AND THE PURSUIT OF GENDER-RESPONSIVE LAW IN SOUTHEAST ASIA

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Abstract

Femicide-the gender-related killing of women and girls has increasingly gained international attention as one of the most severe manifestations of gender-based violence. Yet within Southeast Asia, the concept remains relatively underexplored in legal and policy discourse, and has received limited recognition as a distinct area of concern. This paper examines the challenges surrounding the recognition of femicide in Southeast Asia and explores the implications for developing more gender-responsive legal frameworks across the region.

Drawing on feminist legal theory, the paper analyses how prevailing approaches to homicide in many Southeast Asian jurisdictions may not fully capture the gendered dimensions of killings of women and girls. While existing criminal laws address unlawful killings, they often focus on individual acts rather than the broader social and structural factors that can contribute to gender-based violence. This may limit the visibility of patterns associated with femicide, including links to intimate partner violence, harmful gender norms, and other forms of gender-based harm. The paper reviews existing legal and policy responses in the region, noting that while several countries have strengthened domestic violence and related protections, explicit recognition of femicide remains limited.

The paper further considers the diverse cultural, political, and legal contexts that shape discussions of femicide in Southeast Asia. Debates regarding the adoption of femicide as a distinct legal or policy category often intersect with broader questions of legal tradition, cultural context, state priorities, and approaches to criminal justice. At the regional level, ASEAN and related human rights mechanisms have contributed to advancing efforts to address violence against women, while opportunities remain to further strengthen understanding and responses to gender-related killings.

The paper concludes by exploring pathways for legal and policy reform that move beyond the creation of new offences alone. It argues that strengthening gender-responsive approaches within legal systems requires greater recognition of the structural dimensions of violence against women, improved data collection and analysis, evidence and enhanced integration of gender perspectives into criminal justice responses. By centring Southeast Asian experiences, the paper contributes to emerging scholarship on femicide in the Global South and highlights opportunities for further research, dialogue, and legal development in the region.

FROM PRIVATE HARM TO PUBLIC JUSTICE: A FEMINIST MIXED-METHODS ANALYSIS OF PROCEDURAL CHALLENGES AND LEGAL DISENGAGEMENT

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Abstract

Despite growing attention to survivor-centred responses to gender-based violence, less is understood about how social, cultural, institutional, and survivor-related conditions intersect with the actual trajectories through which reported cases progress, result in attrition, or simply drop out of the criminal justice system.

This study examines the phenomenon of systemic case attrition in violence against women (VAW) litigation within the specific socio-legal context of Baguio City, Philippines. Moving beyond traditional criminological frameworks that often attribute case withdrawal to victim non-cooperation, this research employs a feminist legal critique to frame attrition as a structural by-product of the tension between formal law, familial intimacy, and gendered power relations.

Using an exploratory sequential mixed-methods design, the study first examined the lived experiences of survivors and institutional actors navigating the legal system. The qualitative themes emerged in the areas of individual, socio-relational, and institutional context.

Building on these findings, the quantitative phase analysed 1,083 reported GBV cases over a five-year period, including rape, violence against women and their children, acts of lasciviousness, and child abuse. Binary and multinomial logistic regression examined associations between selected case characteristics and documented case outcomes or status.

Following the separate analyses, integration showed that case attrition cannot be reduced to survivor disengagement alone. Family and relational circumstances, evidentiary difficulties, procedural demands, informal settlement, and institutional delays may surround different case trajectories. The participants' description of settlement as a "shortcut to justice" further illustrates an institutional perspective on how formal proceedings may be redirected, although this does not necessarily represent survivors' own meanings of justice.

The study concludes with a proposed policy framework centred on survivor-centred support mechanisms. This model seeks to dismantle the architecture of attrition by prioritising collaborative investigation and substantive protection, ensuring that the legal system serves as a genuine site of redress rather than a secondary site of victimisation.

Keywords: case attrition; feminist legal theory; exploratory sequential analysis; domestic violence; procedural sensitivity; Baguio City.

DOMESTIC VIOLENCE, EVIDENTIARY DILEMMAS, AND DIVORCE ADJUDICATION IN THE ERA OF THE CHINESE SMART COURT

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Abstract

Across many jurisdictions, digital governance and AI-assisted dispute resolution are increasingly promoted as tools for improving access to justice in domestic violence cases. Yet feminist and socio-legal scholarship questions whether platformized justice systems genuinely enhance protection for survivors or instead reshape which forms of gendered violence become legally visible, evidentially legible, and institutionally actionable.

This study explores the adjudication and characteristics of domestic violence divorce cases in China within the context of "smart courts" and digital judicial governance. Based on 328 divorce judgments from the China Online Judgments Database (2023), the study combines feminist socio-legal analysis and empirical methods to assess evidentiary practices, judicial recognition of domestic violence, and case outcomes. The results show that domestic violence is rarely formally recognized (3.89%), with most judgments either ignoring or dismissing the allegations. Victims often face severe evidentiary limitations; only 22.96% of victims submitted supporting evidence, primarily informal materials such as photos and chat logs, rather than formal documents. Even when domestic violence is recognized, it does not always lead to divorce, compensation, or strong protections. Instead, case outcomes are largely influenced by repeated litigation, procedural screening, and compromise-oriented child custody arrangements. According to the findings, the trend of digital judicial governance does not appear to have significantly impacted the traditional logic of family law adjudication. Instead, it may have reinforced existing stability-oriented practices, making the handling of domestic violence cases more procedurally efficient, but not substantively protective.

The paper argues that digital governance may enhance institutional responsiveness, but such improvement is selective rather than uniform. Platformization can facilitate earlier reporting, faster referral, inter-agency coordination, and the accumulation of standardized evidence, thereby increasing the procedural visibility of certain cases within judicial systems. However, it may also accelerate diversion into mediation-oriented pathways, where domestic violence is reframed as family conflict rather than structural abuse, potentially narrowing access to formal remedies.

More fundamentally, digital systems tend to privilege harms that are easily recorded and categorized-such as physical injuries, repeated police contact, or traceable digital communication-while marginalizing coercive control, psychological abuse, and economic domination, which are difficult to translate into standardized evidentiary forms. In this sense, digitalized governance expands procedural

access without resolving deeper evidentiary and interpretive constraints in domestic violence adjudication.

Overall, the value of digital governance in domestic violence adjudication should not be assessed solely through efficiency or coordination metrics. Instead, it must be evaluated in terms of how technological infrastructures reshape the legal intelligibility and epistemic visibility of gendered harm. While digital systems may expand procedural access, they risk reproducing structural blind spots in recognizing non-physical and coercive forms of domestic violence.

THE PRINCIPLE OF FULL AND TIMELY COMPENSATION THROUGH A FEMINIST LENS: LEGAL IMPROVEMENTS FOR PROTECTING VULNERABLE WOMEN IN TORT LAW

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Abstract

The principles of full and timely compensation are conventionally regarded as neutral and universally applicable foundations of extra-contractual liability law. Yet, this presumed neutrality masks a critical blind spot: the systematic under-recognition of gendered harm. This article contends that, in practice, these principles fail to deliver genuinely "full" and "timely" compensation for vulnerable women, thereby undermining their corrective and restorative functions.

Grounded in feminist legal theory and the concept of substantive equality, the paper re-examines the doctrinal content of full and timely compensation through a gender-sensitive lens. It argues that existing legal frameworks inadequately capture forms of harm disproportionately experienced by women, including psychological trauma, loss of dignity, and constrained life opportunities, as well as the invisible burden of unpaid care. At the same time, the requirement of timeliness is shown to be formally articulated but substantively ineffective, as it does not account for structural barriers-such as stigma, economic dependency, and procedural inertia-that delay women's access to compensation. Methodologically, the study adopts a doctrinal and practice-oriented approach, combining analysis of Vietnamese legal provisions and selected case patterns with reference to international standards, particularly those articulated by the CEDAW Committee and policy guidance from UN Women. This approach allows the paper to identify specific gaps in both the recognition and valuation of gendered damages, as well as inconsistencies in ensuring timely remedies.

On that basis, the article advances a set of targeted legal refinements that remain doctrinally feasible: clarifying the scope of compensable non-material damages, incorporating gender-sensitive criteria in damage assessment, and reinterpreting timeliness in light of vulnerability. Rather than proposing sweeping reforms, the paper offers a grounded and practicable pathway toward a more responsive and substantively just compensation framework for vulnerable women.

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ICFGL 2026 ABSTRACT PROCEEDINGS

04

SESSION 04

LABOUR LAW, CARE WORK AND ECONOMIC SECURITY

18 SEPTEMBER 2026

HO CHI MINH CITY, VIETNAM

RECOGNIZING UNPAID CARE WORK AS LABOR: A HUMAN RIGHTS-BASED APPROACH TO LEGAL REFORM IN VIETNAM

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Abstract

Unpaid care work remains one of the most essential yet under-recognized forms of labor in contemporary society. In Vietnam, care for children, older persons, persons with disabilities, and dependent family members is often treated as a moral responsibility within the household rather than as work that carries social and economic value. This assumption is not gender-neutral. Women continue to perform a disproportionate share of unpaid domestic and care work, and this unequal distribution has long-term consequences for their participation in paid employment, access to social insurance, career advancement, financial independence, rest, and security in old age.

This paper examines unpaid care work as a central issue for feminist law-making in Vietnam. It argues that the legal invisibility of care reflects a deeper divide between the public and private spheres within law. Productive labor in the market is recognized, regulated, and protected, while reproductive labor within the family is often naturalized and left to private responsibility. Although Vietnamese law contains important protections relating to maternity, family obligations, labor rights, and social insurance, these protections remain fragmented and do not yet amount to a coherent legal framework for recognizing and supporting unpaid care work. As a result, care is acknowledged mainly when it is connected to women's biological motherhood or family duty, rather than as a broader social function that sustains households, communities, and the economy.

Using feminist legal theory, this paper asks how Vietnamese law might be drafted differently if care were understood not merely as a private obligation, but as a public value requiring legal recognition. It focuses on three areas of reform: labor law, social insurance law, and family law. The paper proposes a feminist legislative framework based on the principles of recognizing, reducing, and redistributing unpaid care. First, unpaid care should be formally recognized in legal policy-making, national statistics, and gender impact assessments. Second, the burden of care should be reduced through stronger public investment in childcare, eldercare, and community-based support services. Third, care responsibilities should be redistributed through legal measures such as family-care leave, flexible working arrangements, and social insurance credits for periods spent on intensive unpaid caregiving. By bringing unpaid care from the margins of the household into the center of legal reform, this paper contributes to the broader project of feminist law-making. It shows that gender equality cannot be achieved only by granting women equal access to the labor market, while leaving the unequal organization of care untouched. A feminist approach to legislation must ask not only who is formally

equal before the law, but also whose labor remains invisible in making social and economic life possible.

FROM PRIVATE OBLIGATION TO LEGAL STATUS: THE PUBLIC - PRIVATE DIVIDE AND THE RECOGNITION OF WOMEN'S UNPAID CARE WORK IN VIETNAMESE LAW

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Abstract

Vietnam will become an aged society by 2036 (UNFPA), with demand for elder, child and disability care rising sharply. Across Vietnamese households, that care is overwhelmingly performed by women under entrenched gender norms. Yet Vietnamese law treats this care as a private family matter, leaving its costs to fall, by default, on women who already perform it. Feminist legal scholarship has long shown that unpaid care is labour, not private duty; the public/private divide that Vietnamese law inscribes around the family withdraws women's care from the categories of legal claim.

Four statutes regulate family care without recognising it as work. The Law on Marriage and Family 2014 and the Law on the Elderly 2009 impose care duties without state support; the Law on Social Insurance 2024 excludes care time from pension entitlement; and Article 18 of the Law on Gender Equality 2006 affirms equal spousal responsibility without reaching intra-household labour. These rules are gender-neutral, yet the burden falls on women. Adjacent rules mark women as the default carer - still-lower retirement age, longer maternity leave, custody of children under 36 months after divorce (Art. 81) - while women's lower earnings under the "husband-breadwinner" model make them the partner leaving paid work. The public/private divide here is not a description of where care happens but a legal operation determining what counts as work.

The 2022 Vietnam Time Use Survey (World Bank, 6,000 respondents) shows 45% of women performing household care against 24% of men; informal-sector women average 4.34 hours of unpaid care daily to men's 2.66 (ILO Vietnam, 2022). In 2019 - the latest sex-disaggregated data - only 16% of women 65+ received a pension against 27.3% of men; men's average pension exceeded women's by 19.8% (Ramírez López & Sengupta, 2024).

Combining feminist legal methods (Bartlett, 1990) with doctrinal analysis, the paper critiques the public/private divide (Olsen, 1983) and draws on East Asian care insurance (Japan, Korea) and the German Pflegeversicherung. Drawing on Glenn's (2010) account of how law transforms care into status-based obligation, and Tronto's caution (Caring Democracy, 2013) that market pricing distorts care's meaning, it develops recognised care labour: unpaid care given legal status and pension entitlements, not market services. Grounded in CEDAW General Recommendation No. 17 (1991) and the ILO Resolution concerning Decent Work and the Care Economy (2024), it proposes principles for legal reform across the fields that govern care - social insurance, labour, family, and gender equality

law - framed as input for the Vietnam Women's Union, which holds legislative initiative on women's affairs.

Recognition does not override the choice to prioritise care; it ensures the choice is made freely, not under economic pressure. Claiming that Vietnam cannot afford recognition is misframed: the state, market and households are already subsidised by women's unpaid care - through lost pensions, eroded health and reduced labour participation. Recognising care labour does not abolish the public/private divide but refuses to let it determine legal standing - the right to make claims against actors that have long benefited from invisible work.

HOW VIETNAMESE WORKING MOTHERS EXPERIENCE AND NEGOTIATE THE MOTHERHOOD PENALTY IN THE PUBLIC/PRIVATE DIVIDE

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Abstract

The public/private divide has long been central to feminist legal critique because it separates paid work from domestic care while obscuring the legal, economic, and social value of reproductive labour. In the industrial era, this divide became gendered by positioning men in the public spheres of politics and paid work, while women were excluded and subordinated within the private sphere of family and domestic labour. Although women's participation in the labour force has significantly risen, gender inequalities persist and are often reinforced after women transition into motherhood. Existing studies show that working mothers are associated with lower perceived competence, reduced hiring and promotion prospects, heightened expectations for caregiving, and wage penalties, a phenomenon commonly referred to as the motherhood penalty.

Despite growing studies on the motherhood penalty, most existing research remains Western-centric, focusing predominantly on North American and European contexts. In many Asian contexts, including Vietnam, the motherhood penalty is shaped not only by workplace structures but also by culturally embedded expectations of maternal responsibility, filial duty, and women's moral accountability for family well-being. In Vietnam, existing literature discusses broader themes such as gender inequality, work-family conflict, and women's general labor outcomes, but rarely frames them specifically as the "motherhood penalty". Without this lens, it becomes harder to fully understand and address the systemic challenges that working mothers face.

Drawing on feminist legal critiques of the public/private divide, gendered organisations, and intensive mothering, this study examines how Vietnamese working mothers experience, negotiate, and make sense of the motherhood penalty across both workplace and family domains.

By situating Vietnamese working mothers' experiences within feminist debates on labour and the public/private divide, this study expects to contribute to the limited scholarship on the motherhood penalty in Southeast Asia and to unveil that the motherhood penalty is experienced not only in formal barriers within workplace systems, but also through cultural expectations and assumptions shaped by the public/private divide. The paper argues that feminist law-making should not treat motherhood as a private family matter external to labour regulation, but as a site where employment law, care policy, and workplace norms must be rethought together.

INDIRECT DISCRIMINATION AND RECRUITMENT CRITERIA IN VIETNAM'S FEMINIST PERSPECTIVE

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Abstract

Despite Vietnamese labor laws that ban gender discrimination in recruitment processes, exclusionary results emerge because of the use of apparently impartial criteria in recruiting employees. According to this article, exclusion and discrimination are not caused exclusively by the inefficiency of labor laws and random acts of discrimination. Instead, they occur as a result of the development of recruitment criteria.

Based on the feminist theory of employment law, the text asserts that the criterion of neutrality in evaluating candidates for employment does not guarantee equality. Many recruitment criteria assume the existence of an "ideal worker" who is always available, mobile, and without responsibilities to care for anyone else. Even if this requirement seems objective, recruitment criteria based on it could discriminate against people who have other ways of life. Thus, neutrality not only does not prevent discrimination, but it also contributes to it by creating the illusion of the objective structure of the labor market.

In addition to this, the paper points out that Vietnamese law does not contain any doctrine to counteract indirect discrimination. Unlike the European Union and Canada, there are no structured criteria in Vietnam according to which neutral criteria of employment law are considered proportional and necessary. However, even in countries with established frameworks for preventing indirect discrimination, the procedure occurs retroactively.

To eliminate this problem, the research offers the concept of "recruitment design". The author believes that it allows shifting focus from the criterion of neutrality to the proactive design of recruitment criteria. Is it justified to require them to be necessary, equitable and minimally exclusionary? Notably, although this requirement recognizes the legitimacy of certain job demands, it also requires them to be structurally justified and justified by alternative solutions, while ensuring fairness and equal access across all applicants, and addressing systemic inequalities embedded in recruitment practices and outcomes.

DISMANTLING THE SPATIAL LOCUS: A FEMINIST LEGAL RECONSTRUCTION OF THE "WORKPLACE" TO ADDRESS SEXUAL HARASSMENT IN DECENTRALIZED LABOR.

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Abstract

The shift toward remote work reveals that current laws defining the "workplace" are no longer effective since traditional labor statutes usually interpret this concept as a specific geographical location or a physical space where employees perform tasks under an employment contract. Consequently, when sexual harassment occurs in decentralized environments, workers find themselves in a legal gap without protection. To address, this research utilizes feminist legal theory to examine how the traditional "public/private" divide harms remote workers by categorizing remote working spaces as "private" areas where labor laws do not apply, which systematically leaves individuals vulnerable. Accordingly, the study argues that instead of a fixed physical location, the workplace should be understood as a "relational continuum". Building upon this concept, this paper further proposes a model for identifying workplace and defining employer liability for sexual harassment in modern labor contexts based on feminist and comparative legal approach. By doing so, this study offers a doctrinal foundation for legislative reforms that ensure safety and accountability remain effective regardless of where the labor is performed, thereby protecting gender-vulnerable workers in the modern age.

LEGISLATING LEAVE ENTITLEMENTS FOR IN VITRO FERTILIZATION (IVF) TREATMENT THROUGH A FEMINIST LAW-MAKING PERSPECTIVE TOWARD SUBSTANTIVE GENDER EQUALITY

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Abstract

In the context of the increasing prevalence of infertility and subfertility, in vitro fertilization (IVF) has emerged as a modern medical intervention of significant importance in the field of assisted reproduction. Against the backdrop of declining fertility rates and the rapid ageing of the population in Vietnam, IVF carries not only medical value but also broader social significance by contributing to the stabilization of family structures and supporting the implementation of national population policies. Traditional labour law frameworks have largely been constructed upon the archetype of the "ideal worker" which is an employee presumed to be unencumbered by reproductive functions and household caregiving responsibilities. Within such an approach, women's reproductive capacity is frequently perceived as a form of health-related deficiency and, consequently, as an implicit economic burden upon employers. This inevitably exacerbates the risk of gender-based inequality in recruitment practices and employment security for female workers.

In Vietnam, notwithstanding considerable legislative progress in the protection of maternity rights, the law continues to subsume IVF treatment within the ordinary regime of "sick leave". Such an approach reflects merely formal equality, insofar as it focuses exclusively upon the pathological dimension of infertility while failing to acknowledge the distinctive nature of pre-pregnancy reproductive medical interventions in the contemporary context of demographic decline. Accordingly, the adoption of a feminist law-making perspective assumes particular significance in reconstructing legislative reasoning so as to ensure substantive equality and strengthen the protection of women's reproductive rights.

This paper determines the international and Vietnamese legal frameworks governing reproductive rights, and subsequently employs a comparative law methodology to examine international experiences from various jurisdictions regarding IVF-related leave entitlements. On that basis, the article proposes legal reforms for Vietnam aimed at reconceptualizing childbirth through IVF not as a purely private matter, but rather as a contribution of social and communal value.

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ICFGL 2026 ABSTRACT PROCEEDINGS

05

SESSION 05

REPRODUCTIVE JUSTICE, BODILY AUTONOMY AND HEALTH LAW

18 SEPTEMBER 2026

HO CHI MINH CITY, VIETNAM

THE RIGHT TO BLEED: MENSTRUAL LEAVE AND THE FEMINIST RECONSTRUCTION OF LABOR LAW

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Abstract

Menstrual leave has become one of the most contested gender-specific labor protections in contemporary employment law. Supporters defend it as a necessary accommodation for menstrual pain and gendered embodiment, while critics warn that it may reinforce stereotypes, increase discrimination in hiring, or mark women as less reliable workers. This article argues that the debate has been framed too narrowly. Menstrual leave should not be understood as a special benefit, a medical exception, or a paternalistic concession, but as a test of whether labor law can move beyond the male-bodied worker.

Drawing on CEDAW, ICESCR, ILO Convention No. 111, and international standards on just and favorable conditions of work, this article contends that international law already provides the normative foundation for menstruation-related workplace accommodation. Although no universal treaty expressly recognizes a right to menstrual leave, the principles of substantive equality, non-discrimination, occupational health, and decent work require states to address workplace structures that penalize menstruating workers.

Through a comparative analysis of menstrual leave regimes in Japan, South Korea, Indonesia, Taiwan, Zambia, Spain, and selected proposed or subnational models, the article shows that existing laws often reproduce the inequalities they seek to remedy. Some are unpaid, symbolic, or rarely used because of stigma. Others require medical certification, expose workers to privacy violations, or apply only to formal employment while excluding informal, precarious, and supply-chain workers who face the greatest barriers to menstrual dignity. These failures reveal a deeper structural problem: global labor law continues to measure equality against a worker imagined not to menstruate.

The article proposes a feminist framework of menstrual justice at work. Rather than treating menstrual leave as an isolated entitlement, this framework integrates paid leave, flexible accommodation, privacy safeguards, anti-retaliation protections, gender-inclusive drafting, occupational health duties, and coverage for informal workers. By reframing menstrual leave as a question of substantive equality, the article argues that true workplace equality requires law to accommodate bodily differences without converting that difference into stigma.

FROM WELFARE TO RIGHTS: A FEMINIST LEGAL ANALYSIS OF MENSTRUAL HEALTH GOVERNANCE IN INDIA

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Abstract

Menstrual health in India continues to be governed primarily through welfare-oriented schemes and public health initiatives, with limited recognition of menstruation as an issue of gender justice, bodily autonomy, and substantive equality. Despite increasing policy attention toward menstrual hygiene management, the existing legal and governance framework remains fragmented, inconsistent, and deeply influenced by social stigma and patriarchal assumptions surrounding menstruation. This paper argues that the continued treatment of menstrual health as a welfare concern rather than a rights-based entitlement contributes to the legal invisibility of menstruators and reinforces structural gender inequalities.

Using a feminist legal methodology and doctrinal analysis, the study critically examines constitutional guarantees, governmental policies, judicial developments, and menstrual health initiatives in India. The paper analyses how existing frameworks inadequately address the lived realities of adolescents, women in informal labour sectors, incarcerated individuals, persons with disabilities, transgender menstruators, and individuals located within rural and socio-economically marginalised communities. It further explores how the absence of a comprehensive legal framework perpetuates exclusion in access to healthcare, sanitation, education, workplace dignity, and public participation.

The paper situates menstrual health within broader feminist debates concerning embodiment, dignity, reproductive justice, and the governance of gendered bodies. It contends that menstrual governance in India reflects deeper structural inequalities embedded within law and public policy, where menstruation remains simultaneously hyper-regulated, stigmatised, and legally under-recognised. The study therefore advocates a shift from welfare-based responses toward a feminist rights-oriented framework grounded in constitutional morality, intersectionality, accountability, and inclusive policy-making.

By reconceptualising menstrual health as a matter of legal recognition and gender justice rather than charity or welfare, the paper contributes to contemporary feminist legal scholarship and emerging conversations on transformative governance. It concludes by proposing the need for a comprehensive and inclusive menstrual justice framework capable of advancing substantive equality and dignity within Indian law and policy.

Keywords: Menstrual health; feminist legal theory; gender justice; menstrual dignity; bodily autonomy; India - Access to Sexual and Reproductive Health Services -

FIT-TO-WORK AS A BARRIER TO REPRODUCTIVE JUSTICE: PREGNANCY, LABOUR MIGRATION, AND FILIPINO WOMEN MIGRANT WORKERS IN JAPAN

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Abstract

This paper examines how the seemingly neutral standard of being "fit to work" operates as a gendered legal and institutional norm that restricts the reproductive rights of migrant women workers. Focusing on the case of a Filipino woman technical intern trainee in Japan, the paper analyses how pregnancy was treated not as a condition requiring labour protection, medical care, and accommodation, but as evidence of unfitness, contractual breach, and grounds for return.

The case concerns a Filipino woman who migrated to Japan as a technical intern trainee in the care sector. Before departure, she was subjected to repeated pregnancy testing in the Philippines, both during training and as part of pre-departure health screening. After becoming pregnant in Japan, she informed her employer, supervising organisation, and sending agency that she wished to continue working as long as possible, take maternity leave, return temporarily to the Philippines to give birth, and then resume her internship. Instead of being supported to exercise these rights, she was discouraged from continuing the pregnancy, pressured to return to the Philippines, removed from the work schedule, and eventually compelled to sign return-related documents. She later filed a civil lawsuit in Japan, seeking compensation for the violation of her right not to suffer disadvantageous treatment because of pregnancy and childbirth.

Drawing on reproductive justice, feminist legal theory, and gendered labour migration studies, this paper argues that the case reveals a gap between formal legal protection and actual access to rights. Japanese authorities have issued guidance stating that technical intern trainees must not be dismissed or disadvantaged due to pregnancy and that they may continue training after childbirth if they so wish. Yet, in practice, the responsibility for enforcing these rights was dispersed among the employer, supervising organisation, sending agency, and public consultation bodies, leaving the worker without effective protection.

The paper further situates the case within debates in the Philippines on pre-departure pregnancy testing, contraceptive restrictions, and "fit-to-work" certification for overseas workers. It shows that migrant women's bodies are regulated across the entire labour migration corridor, from recruitment and training to employment and return. By linking reproductive justice to feminist law-making, the paper argues that legal reform must move beyond prohibiting pregnancy discrimination in principle. It must also establish enforceable cross-border mechanisms that protect migrant women's bodily autonomy, access to maternity protection, healthcare, housing, and continued employment. The paper

concludes that pregnancy should never be treated as evidence of unfitness to work; rather, it should trigger legal duties of care, accommodation, and rights-based protection.

THE PROTECTION OF REPRODUCTIVE HEALTH RIGHTS OF WOMEN AND LGBTQIAN+ PERSONS IN THE CONTEXT OF THAILAND

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Abstract

Thailand is a party to several international instruments aimed at promoting gender equality and eliminating all forms of discrimination. These include guarantees that women and LGBTQIAN+ persons can access sexual and reproductive health rights equally and inclusively. The Convention on the Elimination of All Forms of Discrimination against Women (CEDAW) obligates state parties to ensure women have equal access to medical services, family planning, and the right to decide on the number of children without coercion. Meanwhile, the Yogyakarta Principles, though not legally binding, are widely recognized as international human rights standards that affirm the right to the highest attainable standard of physical and mental health, including sexual and reproductive health rights without discrimination based on sexual orientation or gender identity. Furthermore, these protections are aligned with Sustainable Development Goal 5.

The findings reveal that despite legal progress, such as Criminal Code amendments regarding safe abortion and the expansion of contraceptive benefits, Thailand still faces obstacles from fragmented legal structures, provider biases, and socio-economic disparities. Through a comparative study of the United Kingdom, Germany, and India, successful models were identified, including the establishment of “Safe Access Zones” around clinics , the removal of “Tampon Taxes” to address period poverty , and the use of community health volunteers (ASHA) in India to distribute contraceptives directly to households. Furthermore, the UK and Germany provide clearer frameworks for gender-affirming care and hormone therapy within their national health systems.

The article proposes a three-phase reform plan to enhance Thai legal and policy mechanisms. In the short term, Thailand should develop a specific national strategy and legislation for reproductive health rights and establish “Safe Access Zones” around medical facilities to protect the privacy and safety of service users. The medium-term plan focuses on reclassifying sanitary napkins as essential goods to exempt or reduce VAT, enacting specific laws regarding Sexually Transmitted Infections (STIs), and including gender-affirming surgery and hormone therapy as standard health benefits. For the long term, the article suggests enacting a comprehensive Anti-Discrimination Law and reforming sexuality education to reduce social stigma and sustainably align Thai legal mechanisms with international human rights standards.

THE RIGHTS DOSE: FEMINIST LAW-MAKING AND A GENDER-AFFIRMING HEALTHCARE FRAMEWORK IN THE PHILIPPINES

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Abstract

Drawing from feminist legal theory, this Paper argues that the State, impelled by the constitutional right to health, bears an affirmative duty to institutionalize a gender-affirming healthcare policy. Grounded in the lived experiences of transgender Filipinos-particularly minors who self-medicate absent accessible care-the Paper contends that the absence of such a policy is not mere legislative inaction, but a sustained dereliction of constitutional duty, one that the State has manufactured through its silence.

This Paper first analyzes the 2024 Cass Review, frequently invoked to justify restrictive policies globally, and interrogates how narratives of scientific uncertainty, detransition, and parental rights have been conscripted into anti-trans lawmaking. It argues that these concerns underscore the necessity of regulation, not prohibition.

The Paper then confronts the two most formidable legal obstacles to gender-affirming care. The first is the now-decided United States v. Skrmetti (2025), which upheld a state ban on gender-affirming care for minors under rational basis review, confirming that equal protection is a constitutionally fragile foundation on which a lasting framework cannot be built. The second is parental authority, a domain in which the State's abandonment of transgender youth is quietly laundered into constitutional legitimacy. The Paper argues that the Philippines, despite the absence of explicit regulation on gender-affirming care, remains acutely susceptible to these rights-denying regimes.

In response, and drawing on Martha Albertson Fineman's theory of the Vulnerable Subject, this Paper advances a feminist constitutional framework anchored in the right to health, bolstered by the Philippine Constitution, domestic statutes, jurisprudence, and the State's international obligations under the International Covenant on Economic, Social and Cultural Rights and the Convention on the Rights of the Child. It then probes whether gender-affirming care, conceptualized as a constitutional health entitlement, can withstand constitutional scrutiny against challenges grounded in equal protection limitations and parental authority.

Finally, deploying Diksha Sanyal's quality-of-life framework alongside the Sen-Nussbaum capabilities approach, this Paper performs an act of feminist lawmaking: It proposes a model gender-affirming healthcare framework that is responsive to the vulnerability of, and discharges the State's constitutional debt to, transgender Filipinos long rendered invisible within law and policy.

RESHAPING MOTHERHOOD IN RECIPROCAL IVF: LEGAL VACUUMS AND REFORM RECOMMENDATIONS IN VIETNAM

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Abstract

The advancements in Assisted Reproductive Technology (ART), while generating positive transformations in social life and traditional family structures and creating opportunities for vulnerable groups, including individuals experiencing infertility, same-sex couples, and single prospective parents, also create complex socio-legal conflicts that require clear legal frameworks.

In Vietnam, Decree No. 207/2025/ND-CP, effective from October 1, 2025, permits single women to undergo in vitro fertilization (IVF) upon request without requiring a prior medical indication. However, Vietnam's current legal framework lacks a definitive mechanism for establishing the legal mother-child relationship and safeguarding the parental rights of single women utilizing IVF.

Prior to this, on August 6, 2025, the Regional People's Court No. 2 of Hai Phong City held an "experience-drawing trial" ("phiên tòa rút kinh nghiệm") – an unprecedented landmark case in Vietnamese judicial history. The case involved a parentage dispute between a gestational mother and a genetic mother over a child born through reciprocal IVF, situated within the context of a cohabiting same-sex partnership-a relationship not legally recognized under Vietnamese law. The adjudication of this case not only underscores the judicial commitment to the "best interests of the child" principle but also highlights the intersection of significant legal lacunae in Vietnam.

This article provides a comprehensive analysis of this unprecedented dispute, examining the case through the lens of Vietnam's positive law while drawing upon progressive legislative and judicial approaches from select international jurisdictions. By advancing targeted legislative recommendations, this paper advocates for the development of an equitable jurisprudential precedent that safeguards fundamental human rights, ensures non-discrimination for LGBTQ+ individuals, and protects the best interests of the child, in strict accordance with the international conventions to which Vietnam is a state party.

Keywords: IVF, single mother, genetic mother, gestational mother, intended mother.

PROTECTING THE SURROGATE RIGHTS UNDER ILLEGAL COMMERCIAL SURROGACY AGREEMENTS: A LEGAL PERSPECTIVE FROM VIETNAM

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Abstract

In Vietnam, surrogacy is legally recognized but only under stringent conditions and solely for humanitarian purposes. The 2014 Law on Marriage and Family and its guiding documents strictly regulate surrogacy to ensure it serves altruistic intentions and explicitly prohibits any form of commercial surrogacy arrangements. This is for protecting the rights and welfare of all parties involved, particularly surrogates, by preventing exploitation through commercial transactions. This article aims to provide a critical analysis of the existing legal provisions on commercial surrogacy in Vietnam. Then, through this examination, the article highlights the complexities and challenges inherent in enforcing these laws and protecting surrogate mothers' rights in practice. Special attention is given to the legal and social consequences faced by the surrogates engaged in commercial surrogacy, especially in the case of dealing with the consequences of surrogacy after being criminally or administratively prosecuted, shedding light on the Vietnamese legal system's broader perspective and policy approach toward such ethically sensitive and legally contentious issues. By delving into these aspects, we hope to propose some recommendations to widen and protect the rights of surrogates in Vietnam.

RETHINKING PRONATALISM: A FEMINIST LEGAL CRITIQUE OF THE HISTORICAL DEVELOPMENT OF POPULATION GOVERNANCE IN VIETNAM

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Abstract

The effectiveness of pronatalist policies has been widely questioned, given their limited success in raising fertility rates. Yet amid rapid population ageing, many states across the Global North and Global South have embraced pronatalism to avert anticipated labour shortages, and Vietnam is no exception. In Vietnam, pronatalist measures are framed as serving the national interest and are promulgated and amplified through official and popular discourse. At the same time, they have provoked strong backlash from young people, who invoke bodily autonomy as a constitutional principle and mobilise gender equality norms to contest state driven fertility agendas. These disputes often manifest as intergenerational conflicts over ideals, rather than as direct confrontations between youth and the state, and they expose a longstanding tension between women's reproductive capacities, motherhood, and nationalist narratives shaped by enduring patriarchal structures.

Drawing on feminist legal theory, this article offers a historical legal analysis of Vietnam's population regulations, from earlier population control measures to the contemporary pronatalist turn, and develops a critical feminist perspective on populationism to illuminate the asymmetric burdens that pronatalism imposes on women. It argues that, despite their uncertain impact on actually increasing births, these policies function as a powerful device for re-inscribing the norm that aligns women with motherhood in a system where masculinist notions of national rationality and interest continue to prevail. On this basis, the article calls for rethinking population governance in Vietnam to achieve a more equitable balance between feminist commitments and the country's sustainable development goals.

FROM PRIVATE CHOICE TO PUBLIC OBLIGATION: PRONATALISM AND REPRODUCTIVE GOVERNANCE IN VIET NAM'S POPULATION LAW

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Abstract

Viet Nam has experienced a decline in fertility rates and a rapid rate of population ageing. According to the National Statistics Office in 2025, the national total fertility rate declined from 2.12 in 2020 to 1.93 in 2025, below the replacement level. In response to this demographic transition, Viet Nam approved the fertility rate adjustment programme (Decision No. 588/QĐ-TTg) in 2020 and subsequently enacted the Population Law (No. 113/2025/QH15), which provides measures to maintain replacement-level fertility rates.

While reproduction and family-making are often situated within the sphere of private life, feminist legal scholarship has demonstrated that legal and policy frameworks structure the conditions under which intimate and reproductive decisions are made. From this perspective, pronatalist interventions warrant examination not only in terms of their demographic objectives but also in relation to reproductive autonomy and gender equality. Drawing on Marxist feminist perspectives, reproductive justice, and feminist legal theory, this paper examines how Viet Nam's Population Law regulates and supports reproduction through legal, economic, and moral mechanisms, and the extent to which the Law addresses or reinforces gender inequality in social reproduction.

The paper identifies three tensions. First, measures intended to support childbearing may expand material assistance while simultaneously reinforcing gendered expectations of women as primary caregivers. Second, employers' responsibilities, workplace conditions, and the reconciliation of paid work and care are insufficiently integrated into the Population Law. Third, in a context where reproductive choice can be constrained by societal and familial pressures, legal measures encouraging motherhood may create risks of juridogenic harm and reinforce repronormativity by omitting the childfree life as a legitimate choice.

By examining the intersections of demographic change, labour, and social care, this paper advocates a reproductive justice approach that shifts attention from fertility outcomes alone towards the material and institutional conditions under which individuals can form families and choose whether and when to have children. This perspective highlights the importance of integrating population policy with maternity protections, care infrastructure, and broader measures that address the structural conditions of reproductive decision-making.

Keywords: reproductive justice; reproductive governance; social policy; population law; reproductive labour.

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ICFGL 2026 ABSTRACT PROCEEDINGS

06

SESSION 06

KINSHIP, GENDER IDENTITY AND INCLUSIVE FAMILY MODELS

18 SEPTEMBER 2026

HO CHI MINH CITY, VIETNAM

INVISIBLE IN THE STATE'S EYES: THE ABSENCE OF LEGAL GENDER RECOGNITION IN THAI NATIONAL ID LAW AND ITS IMPACT ON TRANSGENDER PERSONS THROUGH A FEMINIST LEGAL LENS

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Abstract

Despite Thailand's progressive reputation regarding gender diversity, its legal framework remains inadequate in recognizing transgender persons' identities in official documentation. Although the Marriage Equality Act (2024) marks a significant advancement for LGBTQ+ rights, transgender persons remain unable to change gender markers or name prefixes on national identification documents under the Civil Registration Act B.E. 2534 (1991) and the Female Title Act, B.E. 2551 (2008). This gap between social recognition and legal recognition forms the central concern of this article.

This article has two objectives. First, it examines the absence of Legal Gender Recognition (LGR) mechanisms in Thai law and explores how binary-based identification systems create legal disadvantages for transgender persons. Second, it applies feminist legal theory to analyze how transgender voices have historically been excluded from Thai lawmaking and proposes a rights-based reform framework grounded in autonomy and dignity.

This research employs a feminist legal methodology with two analytical layers. The first involves doctrinal analysis of the Civil Registration Act B.E. 2534 (1991), the Female Title Act, B.E. 2551 (2008), relevant constitutional provisions, and parliamentary records related to the Marriage Equality Act. The second centers lived experience as legal knowledge, drawing on testimonies, reports from international and civil society organizations, records of the National Human Rights Commission of Thailand, and qualitative research on transgender persons in Thailand.

The study identifies three principal findings. First, the absence of LGR creates a persistent mismatch between transgender persons' legal documents and their gender identity, affecting access to healthcare, employment, education, travel, and judicial processes. Second, these effects are intersectional, disproportionately impacting transgender women from lower socioeconomic and ethnic minority backgrounds. Third, the post-Marriage Equality framework creates a recognition paradox: while same-sex couples may legally marry, a transgender spouse's gender identity remains legally unrecognized by the state.

Drawing on Judith Butler's theory of legal intelligibility, Martha Fineman's vulnerability framework, and the Yogyakarta Principles, this article argues that feminist lawmaking must move beyond formal equality toward transformative recognition. It concludes by proposing a self-declaration-based Legal

Gender Recognition framework that removes medical gatekeeping requirements, recognizes transgender persons' autonomy, and incorporates lived experience into legislative design.

STATE, NATION, AND PATRIARCHY: GENDERED INEQUALITY IN THE EVOLUTION OF THAI NATIONALITY LAW AFFECTING THAI MOTHERS AND WIVES

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Abstract

This article, entitled "State, Nation, and Patriarchy: Gendered Inequality in the Evolution of Thai Nationality Law Affecting Thai Mothers and Wives," examines how Thai nationality law has been shaped by state formation, nationalism, and patriarchal social structures. It explores how nationality law historically produced gendered inequalities affecting Thai women in their roles as mothers and wives. The study employs a qualitative socio-legal approach, drawing upon legal documents, legal history, principles of private international law relating to nationality and personal status, feminist legal theory, and the concept of gendered citizenship.

The study finds that prior to the emergence of the modern nation-state, recognition of community membership and Thai identity was not exclusively dependent on paternal authority. Influenced by customary practices, both fathers and mothers could generally contribute to the recognition of a child's belonging. However, with the development of the modern state and the influence of international legal frameworks during the colonial era, Thailand formalized nationality through centralized legislation and state control.

Within this transformation, Thai nationality law increasingly privileged the status and rights of fathers and husbands over those of mothers and wives. Gendered inequalities were particularly evident in nationality transmission, acquisition of nationality through marriage, and naturalization policies. At various points in Thai legal history, Thai mothers faced greater restrictions than Thai fathers in passing nationality to their children, while foreign husbands of Thai women were treated less favorably than foreign wives of Thai men. These distinctions reflected patriarchal assumptions concerning family authority, citizenship, and national belonging, demonstrating how nationality law functioned not only as a legal framework for determining status but also as a mechanism for reproducing gender hierarchies.

The article further traces reforms aimed at reducing these inequalities through successive amendments to Thai nationality law. It argues that these developments reflect Thailand's efforts to align nationality law with international human rights standards, gender equality principles, and contemporary understandings of citizenship. The Thai experience offers an important case study for understanding the relationship between gender, state power, and nationality law in Southeast Asia and may contribute to broader discussions on women's nationality rights and gender equality across the region.

SELF-IDENTIFICATION VS CERTIFICATION: A FEMINIST STUDY OF GENDER RECOGNITION LAWS IN INDIA AND ARGENTINA

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Abstract

Gender recognition laws adopt different approaches to the legal recognition of gender identity. While some jurisdictions recognise gender identity on the basis of self-identification, others require certification, screening, and proof. These approaches raise important questions regarding autonomy, dignity, self-determination, and the extent of state authority over the recognition of gender identity. This paper studies these differences through a comparison of India's Transgender Persons (Protection of Rights) Act, 2019 and Argentina's Gender Identity Law, 2012. The study explores how gender recognition is structured in both jurisdictions, with specific focus on certification versus self-identification. It further analyses how certification-based mechanisms affect the dignity, bodily autonomy, and social inclusion of transgender persons, and proposes a more trans-inclusive approach to gender recognition laws.

The study adopts a qualitative, doctrinal, and comparative legal approach grounded in feminist legal theory. Primary sources include statutes, rules, legislative debates, and relevant judicial decisions, analysed thematically to identify key patterns and approaches within the framework. The analysis focuses on how law constructs "proof" of gender identity and determines whether authority over gender recognition rests with the individual or the state. A comparative framework is used to study differences between India and Argentina across key themes: authority over identity, procedural requirements, the role of medical or administrative bodies, and access to identity documents. To connect law with lived realities, the study also analyses law reform reports and documented experiences of transgender persons. This combined method helps assess not only what the law states but how its design affects the legal recognition, rights, and social inclusion of transgender persons.

The analysis shows that Indian law, while recognising transgender identity, continues to rely on certification, documentation, and screening. This reflects an institutional distrust of self-identification and places control with the state. In contrast, Argentina's law treats gender identity as a matter of dignity and personal autonomy, allowing administrative recognition without medical or judicial gatekeeping. These differences demonstrate how legislative design directly shapes inclusion, documentation processes, and access to legal recognition for transgender persons. From this comparison, the study identifies self-identification, bodily autonomy, dignity, and procedural accessibility as key elements of a trans-inclusive approach to gender recognition laws. The study concludes that legal frameworks grounded in these elements are better aligned with the rights and lived realities of transgender persons.

Keywords: feminist jurisprudence; gender self-identification; transgender rights; legislative drafting; comparative law.

RETHINKING USE AND DESIGN OF GENDERED CATEGORIES IN FAMILY LAW

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Abstract

This paper forms part of a broader doctoral project examining how legal systems categorise individuals on the basis of personal characteristics such as sex/gender, race, and caste, and the consequences of these categorisation exercises for equality, legal recognition, and access to rights. The project studies how law operationalises identity categories, mapping the purposes for which classifications are used and identifying the contradictions, inconsistencies, and 'fit-related problems' that arise when rigid legal categories encounter complex, fluid, and lived realities. It asks a broader jurisprudential question central to contemporary equality debates: when does law need to classify, and how should legal systems balance the need for categorisation with the need to minimise its exclusionary harms?

This paper focuses on gendered terminology within family law and related statutory frameworks in India, examining how legal categories such as 'man', 'woman', 'mother', 'father', 'wife', and 'husband' accommodate, exclude, or otherwise respond to trans persons. Family law provides a particularly significant site for examining legal gender classification because it regulates intimate relationships, kinship, caregiving, parenthood, succession, and social legitimacy, while simultaneously reflecting deeply embedded assumptions about sex, reproduction, and the family. Legal understandings of motherhood and fatherhood frequently remain tied to biological expectations concerning reproduction, gestation, caregiving, and familial roles. As a result, family law remains one of the strongest sites of gender essentialism within contemporary legal systems, even as wider legal frameworks increasingly recognise gender diversity.

Drawing on feminist legal theory and intersectional approaches to law-making, the paper conducts a doctrinal analysis of selected statutory frameworks governing marriage, parenthood, caregiving, inheritance, and family status in India. Particular attention is paid to the implications of constitutional recognition of transgender identity following *National Legal Services Authority v Union of India* and subsequent legislative developments. The paper maps how gendered terminology is deployed across family law and identifies tensions between formal commitments to gender diversity and legal provisions that continue to rely upon binary or biologically grounded understandings of sex, parenthood, and familial status. Comparative reference is made to developments in the United Kingdom, including debates surrounding the interpretation of 'sex' under the Equality Act 2010 and the implications of *For Women Scotland Ltd v The Scottish Ministers*, to illustrate wider challenges faced by legal systems attempting to reconcile competing equality, administrative, and regulatory objectives.

The paper argues that the challenges of trans inclusion in family law cannot be reduced to the simple absence of non-binary or transgender categories. Rather, they stem from the deeper architecture of family law itself. While biologically grounded classifications may produce exclusionary outcomes for trans and gender-diverse persons, they may also reflect administrative, evidential, and policy concerns associated with regulating family relationships and allocating legal rights and responsibilities. Rather than advocating the wholesale abolition of gendered legal categories, the paper argues for greater scrutiny of legal categorisation projects and explores how feminist law-making might develop less exclusionary approaches to legislative drafting. It suggests that lawmakers should avoid classification unless necessary, prioritise self-identification where compatible with the regulatory purpose being pursued, and provide clearer justification where more prescriptive approaches are retained.

THE WORLD OF THE UNMARRIED: MODERN FAMILY MODELS IN THE PHILIPPINE LEGAL FRAMEWORK

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Abstract

The 1987 Philippine Constitution states that the family is the foundation of the nation, and that marriage is the foundation of the family. By their nature of being the basic social autonomous institution, families are granted special legal recognition and protection by the law. In particular, married partners, with or without children, are given primacy in rights and benefits extended by the legal framework, particularly in civil law (successional rights of married partners and marital or "legitimate" family members), family law (special rights granted to marital families), social protection laws (rights to assign marital family as beneficiary for social security benefits), labor law (maternity and paternity leaves), and remedial law (special privileges of married spouses), among others. However, there are other models of the family which are unduly excluded by the systemically entrenched privileging of marriage, including, among others, common-law families, single-parent families, LGBTQIA+ families, polygamous families, and families existing outside of subsisting marriages. Given the limited scope of the traditional marriage model, the declining rates of marriage, the increase in nonmarital children, and the historical and factual presence of non-traditional family models, there is a need to recognize and protect all forms of the Filipino family. This paper examines the social and legal function of the family, and the state's compelling interest in regulating the family and the household vis-a-vis its compelling interest in regulating adult relationships or child-rearing units. The paper then argues for the need to legitimize and recognize diverse forms of families. It then examines the models of household-families which comprise two major models: (1) partnered families and (2) non-partnered families. It further dissects the two models into five submodels of the Filipino family and their treatment within the legal framework, in particular: (1a) married partners; (1b) willfully unmarried partners; (1c) unwillfully unmarried partners; (2a) non-partnered families with children; and (2b) non-partnered families without children. Finally, the paper presents potential legal reforms in order to fully recognize, protect and enrich all Filipino families, regardless of status of marriage or presence of children.

TOWARDS EQUALITY: REIMAGINING EQUAL MARRIAGE RIGHTS THROUGH 'SUYAMARIYADHAI MARRIAGES'

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Abstract

In India, constitutional jurisprudence has witnessed significant developments in LGBTQ+ rights through decisions such as NALSA v. Union of India (2014) and Navtej Singh Johar v. Union of India (2018). However, Despite the decriminalisation of same-sex intimacy and recognition of gender identity rights, the Supreme Court in Supriyo Chakraborty v. Union of India (2023) declined to recognise a constitutional right to same-sex marriage, leaving the question to legislative reform. This paper argues that Section 7A of the Hindu Marriage Act as introduced through the 1967 Tamil Nadu amendment, offers a constitutionally compatible and culturally rooted framework through which India can recognize non-heteronormative marital unions.

Marriage in India is predominantly governed by personal laws, which are rooted in religious traditions and are typically structured in a heteronormative framework. customs. The question then is how can these complex and fragmented laws be moulded to accommodate same-sex unions. Thankfully, India already possesses a historically indigenous anti-hierarchical marriage framework. In response to this, in 1967, the Tamil Nadu Amendment to the Hindu Marriage Act introduced Section 7A. This provision was a direct outcome of the Dravidian Self-Respect Movement, recognised as Suyamariyadhai, or self-respect marriages. Suyamariyadhai Thirumanam marriages were conceived as a social reform, grounded in anti-caste, secular, and autonomy-based principles, a departure from caste-based and religiously sanctioned norms. Suyamariyadhai marriages emphasise consent, individual freedom, equality, and self-respect. By detaching the institution of marriage from patriarchal religious rituals and customary practices, they establish a secular and inclusive model of union. Being secular and flexible in design, this framework resonates with constitutional values, particularly the guarantees of equality under Article 14 and the right to dignity and personal liberty under Article 21. These features suggest that the model of Suyamariyadhai marriages holds significant potential to be extended toward the recognition of same-sex unions within the Indian legal system. Consent being the defining feature of same-sex unions. While the broader structure of Hindu Marriage law remains historically heteronormative, Section 7A's reference to "parties" rather than explicitly gendered terminology opens interpretative possibilities for a more inclusive understanding of marital unions.

The paper proposes a legislative framework inspired by the Suyamariyadhai model to accommodate diverse marital unions, including same-sex unions, within Indian family law. Drawing from queer legal theory, the paper critiques the heteronormative assumptions embedded within Indian personal

laws and showcases how the suyamaridhai architecture can be used to protect equal marriage rights in India

QUEERING INTIMATE RECOGNITION: FROM CONTRACTUAL IMITATION TO PREFIGURATIVE FEMINIST LAW-MAKING IN CHINESE PRIVATE LAW

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Abstract

Under current Chinese law, the only legally recognised intimate relationship is heterosexual marriage registered under the Civil Code of PRC. However, some homosexual couples conduct special imitation aiming to obtain the right and obligation regime as similar to that of heterosexual couples as possible. The recent legal interpretation of cohabitation property permits cohabitants to arrange their property by agreement, which does not explicitly exclude homosexual couples. In practice, some notary offices notarise homosexual cohabitation property agreements, and a very small number of courts have also held that cohabitation can be interpreted as including same-sex relationships. Through signing a series of agreements, cohabitants can secure rights of inheritance from their cohabitants and other protections. Against this background, this paper asks whether the emerging contractualisation practices in China constitute queer inclusion, or instead reproduce heteronormative governance through conditional accommodation. Methodologically, it combines doctrinal analysis of Chinese private law and interpretations with a close reading of cases and notarial practices. It adopts a queer-feminist critique perspective and argues that these contractual arrangements erase queer specificity by implicitly framing queer intimacy as a matter of contractual autonomy and further reinforcing heterosexual marriage as the normative benchmark. Consequently, this paper holds that such imitation does not queer Chinese private law but domesticates homosexual relationships within existing patriarchal and heteronormative structures.

Moving beyond critique, this paper adopts a prefigurative feminist law-making approach to explore transformative possibilities. It is based on the well-documented significance of "chosen families" and diverse kinship networks in queer communities, and recognises that not all individuals seek the same marriage-like legal recognition. Hence, the paper emphasises the need to provide legal choices rather than a single heteronormative template. On the basis of existing practices, the paper presents a DIY law-making experiment that imagines alternative "care agreements" and relevant supportive legislations that transcend heterosexual marriage. It also further explores the potential of gradually reshaping Chinese private law norms in ways that better value lived realities and social justice norms. This paper contributes to feminist law-making discourse by bringing the underexplored Chinese jurisdiction into global conversation. It demonstrates how heteronormative assumptions operate not only through exclusion but through conditional inclusion, and then illustrates pathways for proactive, prefigurative engagement. Ultimately, the paper advocates a shift from heterosexual marriage toward inclusive legal norms that can properly accommodate the diverse intimate relationships in contemporary China.

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ICFGL 2026 ABSTRACT PROCEEDINGS

07

SESSION 07

DIGITAL GOVERNANCE, DATA AND ALGORITHMIC JUSTICE

18 SEPTEMBER 2026

HO CHI MINH CITY, VIETNAM

ALGORITHMIC VOYEURISM AND THE COLLAPSE OF CONSENT: REDEFINING WOMEN'S PRIVACY IN THE AGE OF AI

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Abstract

The gaze has always been a site of power. The architecture of surveillance, from Foucault's panopticon to the modern AI-driven infrastructures, creates a system of control. This article introduces and explores the concept of Algorithmic Voyeurism. This article explores how AI systems constitute a qualitatively new form of voyeurism that existing criminal, tort, and regulatory frameworks cannot adequately address. The algorithmic gaze does not require a human perpetrator, nor does physical proximity constrain it. It operates at a scale and speed that individuals are often unable to comprehend or meaningfully control. Its impact extends beyond the collection of personal data, shaping relationships, autonomy, dignity, and broader social structures. This gaze perpetuates bias and inequality. In response, this paper explores the potential of data feminism as a framework for exposing these biases and promoting more equitable forms of data governance. Building upon the Supreme Court of India's transformative privacy jurisprudence in K.S. Puttaswamy v. Union of India (2017), the article argues for recognising a right to intimate privacy encompassing the right to control one's intimate expression, bodily autonomy, sexual self-determination, and freedom from non-consensual digital gaze as a distinct fundamental right under Article 21 of Indian Constitution, rather than a dimension subsumed within the general privacy right. AI-based systems reproduce existing social hierarchies, making violations of sexual privacy deeply intersectional in nature. Digital harms disproportionately affect women, and become even more severe for women from marginalised castes, darker skin tones, and transgender identities. Thus, we further examine the inadequacy of India's emerging digital regulatory architecture, including the Digital Personal Data Protection Act 2023, the Information Technology Act and its Intermediary Guidelines Rules, New Criminal Laws and the India AI Governance Guidelines, 2025, in addressing the specific mechanisms of algorithmic voyeurism, and proposes legislative and regulatory interventions from the lens of feminist scholars. We also seek to examine the adequacy of consent in algorithmic governance, along with a comparative analysis of the European Union Artificial Intelligence Act. The arguments in this article are anchored in a Global South feminist legal theory framework, foregrounding the structural and intersectional dimensions of algorithmic intimate harm.

Keywords: Algorithmic Voyeurism; Feminism, Intimate Privacy; Artificial Intelligence; Fundamental Rights; Digital Personal Data Protection Act 2023, consent, IT Act.

PRIVACY IN CYBERSPACE AND LEGAL INTERVENTION INTO THE PRIVATE SPHERE: ASSESSING THE LEGAL FRAMEWORK FOR THE PROTECTION OF WOMEN'S PERSONAL DATA FROM A FEMINIST PERSPECTIVE

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Abstract

In the context of the Fourth Industrial Revolution and the global process of digital transformation, cyberspace has become an inseparable part of social life. Nonetheless, this progress has also contributed to the current complex consequences, most notably the rise of gender-based violence in cyberspace. This phenomenon is not merely a conventional cybersecurity issue. It has emerged as a new, sophisticated, and dangerous manifestation of gender inequality in the digital age. Grounded in feminist theory, this article argues that violations of personal data should not be understood solely as infringements of privacy in the narrow sense. From this perspective, any act involving the collection, dissemination, or unauthorized use of women's data without consent must be recognized as a form of gender-based violence. The erosion of personal data protection for women constitutes a mechanism of control, intimidation, and exclusion, effectively marginalizing women from participating fully in contemporary societal development. By applying critical discourse analysis in conjunction with doctrinal legal analysis, this study collects and systematizes specialized materials to re-examine the boundaries between the public and private spheres in the protection of women's personal data in Vietnam. Furthermore, the primary objective of this research is to assess the extent to which Vietnam's legal framework, specifically the Cybersecurity Law 2025 and the Personal Data Protection Law 2025, has been effectively optimized to safeguard women within cyberspace. The article calls for an urgent redefinition of legal responsibility in establishing a gender-sensitive data protection framework. This issue carries not only theoretical significance but also profound practical implications for safeguarding women's freedom and security. Ultimately, through theoretical analysis and practical comparison, the research aims to propose systematic recommendations for improving Vietnamese legal regulations. Building a robust legal framework for the protection of women's personal data in cyberspace is not only necessary for compliance with international standards, but also an essential step toward achieving a fair and humane digital society in which human rights are comprehensively protected through the lens of contemporary feminist jurisprudence.

REIMAGINING THE DATA FIDUCIARY IN PRIVACY LAW: TOWARDS A FEMINIST DUTY FOR DIGITAL HEALTHCARE PROVIDERS IN INDIA

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Abstract

In India, FemTech applications designed for tracking sexual and reproductive health are put forth with a narrative of tools for empowerment, and have seen widespread adoption and user turnout. Circumventing social stigma and geographical challenges, these applications are providing women with access to information about their sexual and reproductive health and reproductive cycle-tracking support, in private, which in turn supports reproductive autonomy. However, when viewed through a privacy lens, these applications also present a complex picture. By collecting and storing intimate and in-depth data, including menstruation cycles, sex, and abortion, FemTech applications are turning what should be tools of liberation into a new form of commercial and behavioural surveillance. The commodification of sensitive health data for profit, including its potential sale to advertisers and insurance companies, raises critical concerns about user privacy and well-being.

The fundamental question to ask is whether these applications promote gender justice or serve as a tool for data extraction and surveillance. FemTech applications are promoted as a bridge between healthcare access and stigma, but the data held by non-state actors will promote discriminatory profiling and targeted social surveillance. The consent framework in the Digital Personal Data Protection Act, 2023, also fails to acknowledge the complex power imbalances and vulnerabilities that arise when handling sensitive data. Specifically, the DPDP Act's reliance on a notice-and-consent mechanism fails to account for dark patterns and digital literacy that push users into exploitative data-sharing. From an intersectional perspective, the algorithmic biases in FemTech applications also play a part in the lives of marginalised women, and manifest in data invisibility, inaccurate predictions, and exclusion.

Using a blended approach of socio-legal and feminist ethics, the authors will explore the disproportionate nature of these harms. This methodology serves as a form of feminist law-making by asking the question to expose how neutral data and privacy regulation fails to account for the lived realities of Indian women. This paper will examine the advantages that FemTech applications provide in overcoming social obstacles with empowerment, and will also critically review the subsequent harms to privacy and social surveillance, as a uniquely Indian risk. Further, it will illustrate the pitfalls in the DPDP Act that concern the protection of sensitive personal data by a data fiduciary. Ultimately, this paper will argue that positive legislative action is essential to achieving substantive gender justice through the imposition of a higher fiduciary duty on FemTech and digital healthcare providers, and it is proposed that these companies should be classified as data fiduciaries under privacy and data law in order to focus on the protection of the users, even where this may conflict with profit motives.

Keywords: FemTech; DPDP Act; data privacy; data fiduciary; reproductive health; sensitive personal data; digital healthcare providers.

HOW TO WRITE FEMINIST DIGITAL CREDIT LAWS: REIMAGINING CREDITWORTHINESS THROUGH WOMEN'S LIVED EXPERIENCES

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Abstract

The rapid expansion of digital lending, financial technology, and automated credit assessment has transformed access to consumer finance. Yet many legal frameworks governing creditworthiness still rely on assumptions shaped by traditional models of paid, continuous, and formally documented work. These standards often appear neutral, but in practice they may disadvantage many women whose economic lives are shaped by unpaid care responsibilities, informal employment, interrupted work histories, rural livelihoods, or unequal property ownership. As a result, women may face exclusion from credit, less favorable borrowing conditions, or unfair assessment within digital lending systems. This paper argues that the problem of inequality in digital credit markets does not arise only from biased algorithms or weak consumer protection. It is also rooted in the legal meaning of creditworthiness itself. Existing rules often reward economic patterns historically associated with male breadwinner models while undervaluing forms of labour and financial reliability more common in women's lived experiences. Despite growing scholarship on AI fairness and financial inclusion, limited attention has been paid to how feminist law-making can reconstruct the legal foundations of digital credit assessment.

Using a qualitative methodology that combines doctrinal legal analysis, comparative legal research, and feminist legal theory, the paper examines current regulatory approaches in Vietnam alongside developments in the European Union, the United Kingdom, and selected Asian jurisdictions. It proposes a feminist model of digital credit law that broadens the indicators of financial reliability, recognizes informal income and care-related economic contributions, strengthens the right to explanation in automated decisions, and prohibits indirect discrimination through proxy data.

The paper contributes to current debates by shifting attention from regulating technology alone to rewriting the legal assumptions embedded in credit markets. It concludes that feminist digital credit laws are essential not only for gender equality, but also for building fairer, more inclusive, and more socially responsive financial systems.

SOCIAL SCORING USING PERSONAL DATA: THREATS AND CHALLENGES OF GENDER INEQUALITY

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Abstract

Social scoring is a sophisticated data retrieval, statistical, and inference system that primarily uses personal data about individuals' behavior on social media to foresee and predict their behavior. Social scoring has become a major concern regarding fairness, social order, and accessibility in society. This system amplifies gender inequality, particularly in labor and finance, through algorithms designed to target social discrimination based on gender biases. Firstly, biases about competence are based on assumptions about future events such as pregnancy, childbirth, and maternity leave. Secondly, biases about behavior are based on preconceived notions such as divorcées, single motherhood, and young women, thereby highlighting a "higher risk level" that significantly restricts access for these affected women. Using comparative legal analysis across the EU and Vietnam, the authors argue that existing legal frameworks are insufficient to address these gendered harms and that targeted legislative intervention is necessary. By examining regulatory approaches in the EU, the authors identify gaps and effective mechanisms in anti-discrimination and algorithmic accountability law, and propose concrete recommendations for law-making in Vietnam focusing on how legislators can design legal norms that incorporate the lived experience of affected women and build enforceable standards of gender-equality into the governance of scoring systems. - Platform and Dispersed Work -

BEYOND FORMAL CONSENT: FEMINIST LEGAL PERSPECTIVES ON INFORMED CONSENT AND ARTIFICIAL INTELLIGENCE IN VIETNAMESE HEALTH LAW

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Abstract

This paper critically analyzes the transformation of informed consent in healthcare law in the age of artificial intelligence through a feminist legal lens, using Vietnam as a case study. The paper argues that the limitations of traditional informed consent frameworks are especially evident in contexts where women's autonomy in healthcare decision-making has historically been constrained by sociocultural norms. In Vietnam, the persistence of patriarchal values, including son preference and gender expectations within the family structure, often undermines women's substantive decision-making power in the healthcare environment. As a result, informed consent often functions more as a formal procedure than as a genuine mechanism for self-determination. The paper suggests that integrating AI into healthcare risks exacerbating existing inequalities. Algorithmic systems trained on biased or unrepresentative datasets can replicate gender disparities in diagnosis and treatment, and their lack of transparency further limits patients' ability to understand and meaningfully challenge medical decisions. In a context where women already cede decision-making power to family members or healthcare authorities, the application of artificial intelligence could deepen cognitive and power asymmetry, reinforcing rather than mitigating structural inequalities. Against this backdrop, the paper highlights the urgent need to reshape the concept of consent in Vietnamese health law to ensure substantive gender equality. The paper proposes a feminist legal approach that expands the obligation to disclose information to include algorithmic transparency, data bias, and non-medical factors such as data governance and institutional interests. Furthermore, the paper advocates personalized, context-appropriate consent processes that account for gender constraints, health literacy levels, and socioeconomic conditions. At the systemic level, the paper calls for a shift toward shared responsibility among healthcare providers, organizations, and AI developers, as well as participatory governance mechanisms that include women and vulnerable groups. Finally, the case of Vietnam illustrates a broader normative challenge: without structural reform, AI could reinforce existing gender hierarchies. Therefore, reshaping informed consent through care ethics is essential to ensure that digital health technologies promote, rather than undermine, women's substantive autonomy in healthcare.

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ICFGL 2026 ABSTRACT PROCEEDINGS

08

SESSION 08

INTERNATIONAL ECONOMIC LAW: TRADE, INVESTMENT AND IP

18 SEPTEMBER 2026

HO CHI MINH CITY, VIETNAM

THE GENDERED ARCHITECTURE OF ARTICLE XX GATT: A FEMINIST LAW-MAKING CRITIQUE FROM EC – SEAL PRODUCTS AND IMPLICATIONS FOR VIETNAM

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Abstract

Mainstream WTO scholarship treats Article XX GATT as a gender-neutral safety valve balancing trade liberalization against legitimate non-economic concerns. Drawing on feminist law-making methodology, this paper argues that the architecture of Article XX, both in its drafting and judicial interpretation, rests on patriarchal and Eurocentric premises that systematically obscure the differential gendered impacts of trade-restrictive measures.

The paper uses EC – Seal Products (DS400/401) as a critical case study. While conventionally framed around the tension between European public morals and Inuit indigenous rights, the dispute conceals a deeper gender dimension: the EU Seal Regime, and the Appellate Body's reasoning sustaining it, rendered invisible the labour and economic position of Inuit women, who have historically been the processors, sewers, and distributors within the seal economy. Reading the Panel and Appellate Body reports against feminist and anthropological scholarship on Inuit mixed economies, the paper identifies four gendered fault lines in Article XX: (i) the privileging of metropolitan moral baselines over the moral economies of indigenous women in the "public morals" inquiry under Article XX(a); (ii) the absence of any gender impact assessment within the necessity test; (iii) the chapeau's failure to capture intersectional discrimination within exempt communities; and (iv) the tokenistic character of the Indigenous Communities exception, which recognises "hunters" while erasing the gendered value chain in which women are central.

The paper then proposes a prefigurative reconstruction of Article XX, integrating gender impact assessment, pluralising "public morals," and reading CEDAW General Recommendation No. 39 (2022) and UNDRIP into the provision via Article 31(3)(c) VCLT. Implications for Vietnam are drawn along two axes. As a respondent to increasingly frequent invocations of public-morals and forced-labour exceptions by trading partners, Vietnam must articulate the disproportionate burden such measures place on the female-dominated workforce of its export sectors. As an invoking party, Vietnam can pioneer feminist law-making by amending Articles 9 and 10 of the 2017 Law on Foreign Trade Management to require gender impact assessment and to redefine "social ethics" in dialogue with the 2006 Law on Gender Equality.

FEMINIST ECONOMIC LAW-MAKING IN SOUTH–SOUTH COOPERATION: RECONFIGURING CHINESE INVESTMENT RULES IN LATIN AMERICA AND ASIA

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Abstract

This paper examines how feminist law making in international economic law can reconfigure the rules that govern Chinese investment and South–South economic cooperation between China, Latin America, and Asia, with a particular focus on WTO framed trade, entrepreneurship, and gendered power relations. It starts from the premise that supposedly "neutral" economic regimes investment treaties, trade rules, public–private partnership (PPP) contracts, and digital governance frameworks systematically marginalize women's voices, reproduce extractive patterns in local communities, and undervalue care, informal labour, and social reproduction in cross border projects. By centering women as economic agents, community leaders, and entrepreneurs rather than passive beneficiaries, the paper argues that feminist legal design can radically alter who sets the terms of global development, who bears the risks, and who captures the value.

Methodologically, the paper offers a novel combination of comparative doctrinal analysis, feminist political economy, and legal storytelling. First, it undertakes a comparative study of foreign investment screening and national security review mechanisms in selected jurisdictions, including China and key Latin American states, to show how security narratives can mask gendered distributive consequences in strategic sectors such as infrastructure, energy, and digital platforms. Second, it analyzes PPP contracts and investment agreements involving Chinese actors in Latin America and broader Asia, focusing on dispute resolution clauses, social and environmental safeguards, and local content provisions to map where women's rights, entrepreneurial participation, and community consultation appear-or are conspicuously absent. Third, it examines the governance of data and digital trade, drawing on internet court practice and emerging WTO e commerce and services disciplines, to illustrate how data flows, platform regulation, and algorithmic governance shape women's economic opportunities and vulnerabilities.

The paper's originality lies in bringing WTO trade law, investment law, and entrepreneurship into a single feminist analytical frame, moving beyond traditional sectoral "women's rights" approaches that treat gender as an add on rather than a structuring principle of economic ordering. It proposes the concept of "feminist economic law making" as a practice of re writing rules-from treaty texts to model PPP clauses and ESG standards-through the lenses of intersectionality, care, and relational accountability. Empirically grounded in South–South cooperation, it highlights Chinese–Latin American and intra Asian initiatives where women lawyers, community organizers, and entrepreneurs are already contesting and reshaping legal tools, from consultation procedures in infrastructure projects to digital inclusion policies and SME support schemes.

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OPENING THE BLACK BOX OF 'WORK OF EQUAL VALUE': A FEMINIST LAW-MAKING APPROACH TO PAY TRANSPARENCY IN THE EU & IMPLICATIONS FOR VIETNAM

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Abstract

Despite being enshrined in international agreements for decades, the fundamental right to equal pay for equal work or work of equal value remains elusive worldwide. The global gender pay gap persists at 20%, approximately 14% within the European Union (EU), and at a comparable rate in Vietnam. From a feminist legal perspective, this disparity is not merely a flaw in law enforcement; rather, it stems from the patriarchal foundations of traditional wage structures and an enduring lack of legal certainty regarding how women's labour is valued. While Vietnam's 2019 Labour Code outlines a neutral but abstract principle of equal pay, it fails to deconstruct the male-centric ideologies that implicitly undervalue work predominantly performed by women.

As the EU rolls out binding measures via Directive 2023/970 to strengthen pay transparency, a unique avenue for "inconspicuous impact" through legal mobilisation has emerged for Vietnam. Driven by contemporary free trade obligations under the EVFTA, the EU expects Vietnam to align its legislative framework with these new regulatory standards. Consequently, this required legislative amendment presents a prime opportunity to shift from mere legal compliance to genuine feminist lawmaking.

This study reconceptualises the reform of equal pay laws in Vietnam as a practical exercise in feminist legislation. Commencing with a critical theoretical framework, the first section conducts an in-depth analysis of ILO standards and the EU legal framework to deconstruct traditional wage structures, exposing how indirect discrimination disproportionately disadvantages women. The second section draws upon feminist jurisprudence, examining landmark cases from the Court of Justice of the European Union (CJEU) to reimagine the objective criteria and methodologies used to assess 'work of equal value' beyond traditional patriarchal valuations. The third section assesses the paradigm shift introduced by the pay transparency mechanisms of Directive (EU) 2023/970 and evaluates their subversive potential to actually transform the labour market.

In its final section, this study proposes actionable pathways for integrating feminist perspectives directly into legislative drafting. By contrasting the EU and Vietnamese frameworks, the paper illustrates how Vietnam can write laws that not only incorporate the realities of women's marginalised labour but also structurally eliminate gender pay inequity. Ultimately, the study leverages international trade pressure (EVFTA) as a pragmatic tool to realise progressive feminist demands in a national legal framework.

Keywords: Feminist, Work of equal value, Pay transparency, Legislative, EVFTA.

THE LEGAL ARCHITECTURE OF GENDER LEGIBILITY: BINARY CATEGORIES, SINGLE-AXIS LOGIC, AND THE LIMITS OF GENDER-RESPONSIVE LAW-MAKING

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Abstract

The category 'women' that feminist law-making seeks to protect is already constructed upstream, by legal and quasi-regulatory instruments that fix gender as a single-axis variable before any reform reaches it. This paper examines three such instruments operating across distinct regulatory modalities: the Workplace Gender Equality Act 2012 (Cth), a statutory regime; the ASX Corporate Governance Principles and Recommendations, a soft-law instrument; and the 2X Criteria, a global private standard administered by 2X Global.

Each instrument operationalises gender through a binary man/woman definition and threshold-based measurement — headcount disclosure, proportional ownership and leadership thresholds, and employment-share benchmarks. None requires disaggregation by race, migration status, disability, age, or class within the gender variable. The same single-axis logic recurs across three regulatory modalities and three stages of the investment chain, and this convergence is the architectural finding of the paper.

Read through feminist legal theory and standpoint epistemology, these instruments are not neutral measurement tools. They are productive of the social field they purport to describe, making certain women legible to capital and certain women structurally invisible. The migrant domestic worker, the refugee entrepreneur in the informal economy, and the woman whose precarity sits at the intersection of gender, race, status, and care are not missing from the data by accident: they are foreclosed at the definitional level by the categories on which the instruments depend.

The analysis draws on Harding, Collins, Conaghan, Naffine, and Thornton to develop the argument that the legal architecture of gender legibility constitutes the epistemic boundary within which gender-aware finance subsequently operates. A graduated Five-Level Intersectionality Spectrum, extending existing intersectional scholarship (McCall; Cho, Crenshaw and McCall; Hancock), is used as a methodological aid to demonstrate that the three instruments sit at the same lower levels of intersectional engagement as the scholarship downstream of them.

THE ART OF INTERNATIONAL ECONOMIC LAW AND ITS RIVALS: REFLECTIONS ON LAW-MAKING, VISUALITY AND FEMINIST POLITICAL ECONOMY

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Abstract

This paper considers the use of art as a form of feminist law-making in the context of international economic law. Art has long played a role in shaping the authority and imagination of international (economic) law (Charlesworth, 2023). One need only look at the mix of artworks contained in the Centre William Rappard, which once served as the headquarters of the International Labour Organisation (ILO) but is now the headquarters of the World Trade Organisation (WTO), to see this. The artworks in that building dating from the first half of the 20th century, when it served as the ILO headquarters, depict 'a world economy of labor, bodies, toil, and leisure' (Slobodian, 2018, 241). In contrast, those that came after the General Agreement on Tariffs and Trade (the WTO's predecessor) took over the building in the mid-1970s show a world economy of 'objects, commodities, and flows' (Jeffrey and Slobodian, 2018). In this mix, scholars have traced (and lamented) the movement from one dominant international legal and economic imaginary, centred on formal labour, to a more recent neoliberal one, which sought to write out the role of people in the world economy altogether (Slobodian, 2018). But what is notable from a feminist perspective informed by social reproduction theory is the way in which both visions overlook the vast realm of 'life-making' practices (Sears, 2017) that underpin and help to sustain the world economy, from unpaid care work to food systems. In this paper, I explore feminist attempts to challenge these dominant depictions of the global economy, and the legal imaginaries with which they are entangled, through counter-art. Focusing on the Community Economies Research Network's 'Redrawing the Economy' project in the mid-to-late 2010s, La Via Campesina's 'Artists for Food Sovereignty' exhibition in 2022, and the use of artwork in two recent people's tribunals, the Global Tribunal of Women Workers in 2022 and the Bi-National People's Tribunal on the Struggles of Farmworkers in North America in 2024, it examines how visual art has been used to reveal the submerged parts of what has been called the 'economic iceberg' (Gibson-Graham, 2003; 2006) and reimagine international economic arrangements. Building on insights about the turn to art in feminist judgment projects (Cowan, Kennedy and Munro, 2020) and other forms of activism engaged with law (Parsa and Snodgrass, 2022), the paper argues that these counter-art projects have jurisgenerative force (Cover, 1983) insofar as they unsettle dominant legal understandings of what constitutes 'the economy' and enact alternative modes of ordering. In this way, they can be seen as instances of feminist world-making (Goodman, 1978), with a distinctive law-making dimension.

FROM THE BODY TO THE WIPO: INTELLECTUAL PROPERTY AS A FEMINIST GEOLEGALITY

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Abstract

This contribution explores intellectual property (IP) as a feminist geolegality, situating global IP law within spatial, hierarchical, and affective frameworks. Building on critical and feminist geographic and legal scholarship, it argues for a holistic, multidisciplinary approach that moves beyond normative binaries of rights and access. By conceptualising IP as a capitalist superstructure negotiated across scales (from the human body to international fora), the analysis reveals how law's power is embodied, commodified, and reproduced through spatial practices. Drawing on feminist geography, it examines subjectivity, embodiment, and affect to expose the intersections of IP with socio-political and cultural ecosystems. Through worked examples from various intellectual property rights, the presentation demonstrates how bodies and atmospheres become sites of IP's hierarchical logic, shaping neoliberal hegemonic terrains. Ultimately, the analysis offers a feminist geographic lens to reimagine IP as a concurrent socio-legal and geopolitical phenomenon, advancing critical, justice-oriented scholarship. Extending this framework, the contribution develops a scalar reading of IP that traces its movement across intimate, local, and global spaces. It begins by examining the human body as a site where IP is both enacted and made visible, highlighting how legal doctrines disassemble and commodify bodily materials and creative outputs while reinforcing gendered and racialised hierarchies of value. In this context, the body operates as a form of "compressed geolegality," where global legal norms converge and are experienced in lived, affective ways.

The analysis then expands to the concept of atmosphere as an assemblage of human and more-than-human elements shaped by IP. In urban and cultural settings, intellectual property contributes to the formation of neoliberal "brandscapes," where creativity, identity, and place are commodified and circulated as market assets. Mechanisms such as trademarks and geographical indications are shown to codify and monetise affective and environmental qualities (such as heritage, taste, and ambience), often obscuring the labour and knowledge of women and marginalised communities.

Across these scales, the presentation reveals IP as a dynamic and mobile structure that simultaneously operates through vertical hierarchies and horizontal assemblages of meaning. A feminist geolegal lens allows for a critical interrogation of how law produces and sustains inequalities, while also opening space to rethink intellectual property beyond its traditional doctrinal boundaries.

FEMINIST ANTI-CORRUPTION LAW-MAKING: REWRITING INTEGRITY FRAMEWORKS AROUND WOMEN'S LIVED EXPERIENCES IN EURO-MEDITERRANEAN COOPERATION

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Abstract

Corruption is often treated as a governance failure, a technical compliance problem, or a matter of institutional efficiency. This paper argues that it should also be understood as a feminist legal problem. Across Europe and the Arab region, corruption does not affect all people in the same way. Women, especially those in marginalized communities, encounter corruption through gendered forms of harm: sextortion, exclusion from political and administrative decision-making, unequal access to public services, workplace coercion, and the diversion of social resources on which they often depend. Yet anti-corruption laws and strategies frequently remain written in gender-neutral language that fails to name these harms or respond to women's lived realities. Using feminist law-making as a methodology, this paper asks how anti-corruption frameworks would look if they were drafted not only to punish bribery or abuse of office, but to confront the patriarchal and institutional conditions that make gendered corruption possible. The paper builds on Euro-Mediterranean examples of women's leadership in anti-corruption and argues these experiences should inform the design of laws, institutions, and cooperation agendas. It proposes a feminist anti-corruption law-making agenda built around three layers: recognizing sextortion and gendered abuse of power as corruption-related harms; adapting whistleblower protection, access to information, public procurement, and audit systems to women's specific risks; and supporting women's leadership in oversight institutions through Euro-Mediterranean cooperation. By moving beyond gender mainstreaming toward feminist law-writing, the paper offers a practical model for transforming anti-corruption law into a feminist accountability tool.

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ICFGL 2026 ABSTRACT PROCEEDINGS

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SESSION 09

MARGINALITY, CRIMINALISATION AND THE CARCERAL STATE

18 SEPTEMBER 2026

HO CHI MINH CITY, VIETNAM

WRITING GENDER APARTHEID INTO ASYLUM LAW: A FEMINIST JUDGMENT OF THE ECJ JOINED CASES C-608/22 AND C-609/22, AH & FN V. FEDERAL OFFICE FOR IMMIGRATION AND ASYLUM

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Abstract

This paper presents a feminist re-writing of the ECJ's judgment in Joined Cases C-608/22 and C-609/22, AH & FN v. Federal Office for Immigration and Asylum. In the judgment, the ECJ held that the cumulative discriminatory measures imposed on women by the Taliban regime, including restrictions on education, employment, freedom of movement, and political participation, are sufficiently severe to constitute persecution under Article 9(1)(b) of the Qualification Directive. The Court further held that, for Afghan women, nationality and gender alone may suffice to establish a well-founded fear of persecution, without requiring additional individual assessments.

Yet despite effectively describing an institutionalized system of domination targeting women as a group, the Court stopped short of naming that system as gender apartheid. This paper argues that the judgment already applies the logic and definition of gender apartheid while refusing to articulate it explicitly. Through a feminist judgment rewrite, I contend that naming gender apartheid is not merely symbolic, but doctrinally necessary to align EU asylum law with developments in international human rights law and international criminal law, where the codification of gender apartheid has gained momentum.

Drawing on feminist legal theory, feminist judgment methodologies, and findings from the People's Tribunal for Women of Afghanistan, this rewrite centers the testimonies and legal claims of Afghan women, who have consistently identified Taliban rule as a regime of gender apartheid (Conference Theme 4). Rather than treating persecution as a series of isolated discriminatory acts, the feminist judgment reframes the persecutor as the regime of gender apartheid itself.

This reconceptualization has implications beyond Afghanistan. Grounding refugee recognition in exposure to gender apartheid instead of nationality-based premises could extend protection to those resisting structurally similar forms of state-enforced gender oppression, including Iranian women. Such an approach is especially urgent amid continuing deportations and increasingly restrictive asylum practices across the EU. The feminist rewrite therefore positions gender apartheid as a transnational category that connects distinct areas of international law.

By imagining the law differently, the paper contributes to feminist law-making projects that move beyond critique toward the reconstruction of legal doctrine (Conference Theme 6). It suggests that feminist judgments can serve as tools for reshaping asylum law into a framework capable of naming and responding to gender apartheid.

REWRITING THE SUBJECT OF LAW: TRIBAL WOMEN, INTERSECTIONALITY, AND THE REFORM OF INDIA'S GENDER LEGAL FRAMEWORK

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Abstract

This paper examines the compounding vulnerabilities of tribal women in India, shaped by the intersection of gender, Adivasi (indigenous) identity, landlessness, and political labelling. Despite the evolution of feminist legal theory, the specific lived realities of tribal women remain largely absent from mainstream jurisprudence, a gap originating from their exclusion during the drafting of the Constitution and persisting through modern legislative processes.

The research critically analyses the "positionality" of tribal women, arguing that existing gender-responsive laws especially Bharatiya Nyaya Sanhita, 2023 previously known as Indian Penal Code, 1860 and the Scheduled Caste and Scheduled Tribe (Prevention of Atrocity Act), 1989, while perhaps adequate for urban, upper-caste, or middle-class perspectives, fail to encapsulate the complexities of tribal women's lives. By documenting specific cases of sexual assault, the paper highlights a significant judicial failure, the inability of the courts to interpret the factual matrix through a tribal woman's standpoint.

To provide a broader context, the study draws parallels with global discourses on intersectional gendered violence against indigenous women in other jurisdictions, evaluating the impact of their respective legal reforms and judicial interventions. The paper concludes by proposing a framework for legal reform that centres the voices of tribal women working at the grassroots. It advocates for a shift in feminist law-making that moves beyond symbolic representation toward a substantive inclusion of intersectional realities.

MUSLIM WOMEN RIGHTS AS MULTICULTURAL CLAIMS

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Abstract

This article analysis how Muslim women's rights accommodated under the constitutional secular arrangement. In the post-colonial India, from the Shah Bano to the Syara Bano case verdicts, Muslim women were compelled to choose between group and gender rights. To explore this an ethnographic study was conducted in Prayagraj, Uttar Pradesh, in 2017. This study demonstrates how everyday life of Muslim women negotiated their individual rights within the community. The study reveals that women do not merely choose between individual and group rights – they forge a middle path through hybrid spaces. This article argues that the promise of Indian secularism sitting in its capacity to accommodate both gender justice and community autonomy. Engaging a fieldwork study in Prayagraj, it depicts how Muslim women negotiate rights not only within the state law but also by forging Quranic interpretations and aligning with women's movements. Such negotiations propose that secularism in India, if attentive to these voices, can harmonize the conflict between individual and group rights. In context of, legal laws reform, how do Muslim women in Prayagraj face the strategic dilemmas of claiming their individual rights without losing their religious freedom? This article asks three guiding questions: a.) How does the legal reform (Muslim Women Protection of Rights on Marriage act 2019) bring a perplexity for Muslim women - whether they choose reform within the community or choose patriarchal authority of religion? b.) How have Indian State and judiciary so far failed to ensure gender-just family laws while safeguarding cultural rights concurrently? c.) How does the Indian secularism co-exist both Individual and religious rights simultaneously? This article seeks to address a gap through an empirical study in response to Susan Moller Okin's critique that multiculturalism is bad for women. Much of the existing scholarship in response to Okin's critique of multiculturalism has considered either top-down legal reforms or continued to be theoretical debate.

INTERNATIONAL REFUGEE LAW: FROM QUEER EXCLUSION TO QUEER RECONSTRUCTION

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Abstract

The 1951 Refugee Convention was not designed to protect people fleeing persecution on the basis of sexual orientation or gender identity. Although the definition of a refugee has been expanded, protection remains inconsistent and partial and often shaped by cis/heteronormative assumptions. This is especially significant in the context of intersectionality, inclusion, and marginalised voices in law, as sexual and gender diverse asylum claimants are required to translate their personal identities into legal narratives to prove credibility. This paper argues that international refugee law must move beyond such frameworks and assumptions by rethinking what constitutes sexual and gender diversity. Existing methods for assessing these claims do not accurately reflect the current complexities of migration or lived experiences of asylum seekers and their identities. The European Union had approached this challenge by adopting several methods of assessing sexuality and gender identity, which then violated human rights. In other countries, such as the United Kingdom, decision-makers continue to rely on narratives that evoke emotions. However, these methods reflect binary and heteronormative prejudices and assumptions, excluding individuals who do not conform to them. Therefore, credibility practices often rely on emotional performance, stereotypical performances and assumptions about how a sexual and gender diverse person should perform their identity. The paper further contends that before credibility assessment frameworks can be reformed, international refugee law must first reconstruct its understanding of sexuality and gender. A queer theory approach is therefore essential, as it enables refugee law to better understand sexuality and gender and to reflect the lived realities of sexual and gender diversities. This paper contributes to broader debates on how law can become more inclusive and responsive to current issues of refugee law, and calls for a reconstruction of ideas before attempting to implement any legal frameworks of credibility assessments. Before any attempt is made to redesign the credibility assessment of sexual and gender identities, it is crucial to reconstruct sexuality and gender in international refugee law. To encompass this reconstruction, it is necessary to adopt a queer theory approach to understand the fluidity of sexuality and gender.

WHEN PROTECTION IS NOT ENOUGH: RE-CONCEPTUALIZING TRAUMA IN VIETNAM'S JUVENILE JUSTICE LAW FOR GIRL CHILD VICTIMS

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Abstract

Vietnam's juvenile justice law establishes a distinct legal framework governing the participation of children in criminal proceedings, including children who appear as victims. The law emphasizes protection, child-friendly procedures, and the best interests of the child, marking an important shift away from punitive and adversarial models. However, this paper argues that within the existing juvenile justice regime, trauma experienced by child victims-particularly girl children, who are disproportionately affected by gender based violence and abuse-is primarily conceptualized as a matter of procedural protection rather than as a legal context capable of reshaping the design of justice. Drawing on feminist law making, the paper offers a doctrinal analysis of Vietnam's juvenile justice law as applied to child victims. It examines legal provisions concerning child-friendly procedures, protective measures, participation rights, and safeguards against secondary victimization. The analysis demonstrates that while trauma is acknowledged as a justification for special protections and accommodations, it remains external to the core legal assumptions that structure evidentiary reasoning, assessments of testimony, and expectations of participation. In effect, trauma is managed through protective mechanisms without influencing how the law conceptualizes credibility, coherence, and agency in the narratives of child victims.

This protective but limited approach has significant gendered implications. For girl child victims, whose experiences of harm are often shaped by prolonged exposure to coercion, control, and gendered power relations, the law individualizes trauma while maintaining an implicit image of the child victim as capable of providing stable, linear, and consistent accounts. As a result, juvenile justice law appears formally child centred and humane, yet remains structurally anchored in assumptions that fail to reflect the lived realities of many girls.

Rather than advocating the expansion of protective measures, the paper argues that feminist reform should begin by re-conceptualizing trauma as a constitutive legal context within juvenile justice law for child victims. Such a shift would allow trauma to inform not only how girl victims are protected, but also how legal processes are designed and how justice is substantively understood and delivered. By exposing how trauma is under-conceptualized rather than under-protected, the paper contributes to feminist law making by challenging the taken-for-granted neutrality of protective legal frameworks and inviting a gender-responsive re-imagination of juvenile justice law.

THE PARADOX OF PROTECTION: CRIMINALIZATION OF MORALITY IN INDONESIA'S NEW CRIMINAL CODE AND THE ABSENCE OF LEGAL PROTECTION FOR FEMALE SEX WORKERS

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Abstract

Indonesia's enactment of the new Criminal Code through Law No. 1 of 2023 on the Criminal Code (The 2023 KUHP) reflects the state's effort to reform national criminal law in accordance with Indonesian moral values. Nevertheless, the expansion of morality-based provisions within the 2023 KUHP raises concerns regarding its implications for vulnerable groups, particularly female sex workers (FSW). Although the 2023 KUHP does not explicitly criminalize prostitution or FSW as direct offenders, the legal framework surrounding morality offenses, public order regulations, and related enforcement practices continues to position FSW as objects of social control and punitive intervention. This condition creates a paradox in which the state emphasizes moral regulation while simultaneously failing to provide adequate legal protection for women who experience structural vulnerability, violence, discrimination, and social exclusion. This article examines the paradox of protection within Indonesia's 2023 KUHP by analyzing how morality-based criminalization indirectly contributes the marginalization of FSW and the absence of a rights-based protection framework. Using normative juridical research methods, this study applies statutory, conceptual and human rights approaches to analyze relevant provisions within the 2023 KUHP, constitutional guarantees, human rights instruments, and related legal doctrines. The article further employs feminist legal theory and the concept of indirect criminalization to assess the relationship between morality-oriented criminal policy and the legal vulnerability experienced by FSW. This study argues that the absence of explicit criminalization does not eliminate the existence of punitive legal consequences against FSW. Instead, morality-based criminal law, combined with discriminatory enforcement practices and regional public order regulation, produces forms of de facto criminalization that disproportionately affect women. Furthermore, the state's legal approach remains centered on preserving public morality rather than fulfilling its constitutional obligations to protect vulnerable individuals from violence, exploitation, and unequal treatment before the law. As a result, FSW remain excluded from meaningful legal protection despite being significantly exposed to social and institutional harms. This article concludes that the 2023 KUHP reflects a morality-oriented criminal policy that inadequately addresses the structural realities faced by FSW. Therefore, future legal reform should move beyond punitive moral regulation and incorporate a human rights-based approach that recognizes FSW as rights-bearing subjects entitled to dignity, equality, and legal protection.

GENDER NEUTRALITY AND THE INVISIBLE NEEDS OF FEMALE PRISONERS: A FEMINIST CRITIQUE OF VIETNAMESE PRISON SENTENCE ENFORCEMENT LAW

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Abstract

This article examines the treatment of female prisoners under the Vietnamese prison sentence enforcement law through the lens of feminist legal theory. It argues that although the legal framework formally adopts a gender-neutral approach to the execution of prison sentences, such neutrality may obscure the specific realities, vulnerabilities, and lived experiences of women in prison. Drawing upon feminist critiques of formal equality and structural discrimination, the article contends that prison systems have historically been designed around male experiences, resulting in the marginalisation of women's gender-specific needs within penal institutions.

The article focuses on several dimensions of female imprisonment, including reproductive health, pregnancy, motherhood, childcare responsibilities, mental health, hygiene, and conditions of detention. It further evaluates the extent to which Vietnamese law reflects international human rights standards relating to women prisoners, particularly the United Nations Bangkok Rules. While Vietnamese law contains certain humanitarian and protective provisions for female prisoners, many legal norms continue to reflect a formally equal rather than substantively gender-responsive model of prison governance.

Using doctrinal legal analysis combined with feminist jurisprudence, the article demonstrates that gender neutrality in prison law may unintentionally reproduce structural inequalities and render women's needs "invisible" in both legislation and prison administration. The article therefore advocates a shift from formal equality toward a gender-responsive approach to prison sentence enforcement that incorporates women's lived experiences, dignity, and reproductive realities into legal and institutional reform. In doing so, the article contributes to contemporary discussions on feminist lawmaking, prison reform, and human rights protection in Vietnam and broader Southeast Asian contexts.

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ICFGL 2026 ABSTRACT PROCEEDINGS

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SESSION 10

ENVIRONMENTAL LAW AND CLIMATE JUSTICE

18 SEPTEMBER 2026

HO CHI MINH CITY, VIETNAM

RETHINKING WATER GOVERNANCE IN THE LOWER MEKONG: A FEMINIST LAW-MAKING APPROACH TO GENDERED INSECURITY

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Abstract

In many Asian cultural contexts, traditional gender and social norms assign women primary responsibility for securing water for household livelihoods. According to the UNESCO' United Nations World Water Development Report, women are responsible for water collection in over 70% of unserved rural households. As water resources become increasingly scarce and unstable, women bear a disproportionate burden. They are required to spend significantly more time and physical effort collecting water, which negatively affects their health and limits their access to education and income-generating opportunities. In the Asia-Pacific region, women spend 4.1 times more time than men on unpaid care and domestic work, much of which is water-dependent. Moreover, in water-reliant sectors such as small-scale agriculture and fisheries, women's livelihoods are directly affected by fluctuations in water availability. In the Lower Mekong region, women account for approximately 35-55% of the aquaculture workforce, underscoring their structural dependence on water resources.

Despite these realities, water security in the region continues to be addressed predominantly through state-centric that overlook gender dynamics. Empirical evidence indicates that only 27% of countries report high levels of women's formal representation or regular consultation in water governance processes, reflecting a persistent gender gap in decision-making. This paper therefore asks: how can feminist law-making approaches be utilized to address the gendered dimensions of water insecurity and improve water governance outcomes? It argues that gender-blind governance not only exacerbates gender inequality but also undermines the effectiveness of water security strategies. Focusing on the Lower Mekong River Basin, comprising Vietnam, Laos, Cambodia, and Thailand, where over 50 million people depend directly on the river for their livelihoods, this paper examines how water insecurity and gender inequality intersect in a highly water-dependent socio-economic context.

The paper is structured into three parts. First, it establishes the theoretical framework underpinning the study by examining (i) the relationship between gender equality and water security, (ii) the concept and dimensions of water governance, and (iii) the feminist law-making approach. Second, it contextualizes these concepts within the Lower Mekong region by analyzing the region's water security challenges and governance landscape. This section also assesses existing national and regional legal and policy frameworks to identify gaps and areas requiring reform. Third, building on this analysis, the paper proposes pathways for integrating feminist law-making principles into water governance frameworks. It argues that such an approach can contribute to more inclusive, equitable, and effective water governance, thereby enhancing water security at the community level.

FEMINIST LAW-MAKING AND WATER JUSTICE IN THE LOWER MEKONG BASIN: WOMEN'S AGENCY AND CLIMATE-INCLUSIVE PEACEBUILDING IN VIETNAM AND CAMBODIA

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This paper examines how feminist approaches to law-making can advance more inclusive and climate-responsive water governance in the Lower Mekong Basin, focusing on An Giang Province in Vietnam and Stung Treng Province in Cambodia. Situated within feminist legal theory and the Women, Peace, and Security (WPS) agenda, the study explores how existing water governance frameworks continue to marginalize women, ethnic minorities, and other vulnerable groups despite their central role in sustaining community resilience under conditions of climate stress.

Drawing on comparative qualitative fieldwork, the paper analyzes how climate-induced water insecurity, hydropower expansion, and environmental degradation disproportionately affect Khmer women in An Giang, Kuy women in Stung Treng, female-headed households, and elderly populations. The findings reveal that formal water governance systems remain highly technocratic, male-dominated, and insufficiently responsive to intersectional inequalities. Women's contributions to conflict mediation, community negotiation, and resource-sharing practices are often invisible within formal legal and institutional structures.

The paper argues that feminist law-making requires moving beyond gender-neutral legal frameworks toward approaches that recognize lived experiences, care-based practices, and local ecological knowledge as legitimate forms of legal and political authority. For example, women in An Giang frequently mediate irrigation-related financial disputes through informal negotiation mechanisms, while women in Stung Treng play key roles in maintaining social cohesion around shared water resources during periods of scarcity. Yet these practices remain excluded from formal decision-making processes due to gender norms, language barriers, and unequal access to institutional power.

The paper further examines community-led ecological adaptation as feminist legal pathways for strengthening participation, environmental justice, and collective governance. Rather than treating water solely as a technical or economic issue, the paper conceptualizes water governance as a site of social reproduction, care, and peacebuilding.

By localizing feminist legal perspectives within the climate and water governance context of the Mekong region, this paper contributes to broader debates on feminist law-making, intersectionality, and environmental justice in Southeast Asia. It calls for legal reforms that institutionalize women's leadership, integrate indigenous and local knowledge systems, and promote participatory governance

mechanisms capable of addressing both climate vulnerability and structural inequality. Key Words: Women's Agency, Water justice; Women-Peace-Security Agenda; Climate governance; Lower Mekong Basin.

FROM CARBON TO CARE: FEMINIST REWRITING OF CLIMATE ADAPTATION GOVERNANCE IN VIETNAM

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Climate adaptation governance is often framed as a technocratic project of infrastructure, resilience and risk management. Yet adaptation law is not gender-neutral. Existing adaptation frameworks frequently privilege expert-led planning, resilience metrics and infrastructure-centered governance while rendering legally invisible the unpaid care work, domestic survival practices, informal community labour and embodied experiences that sustain adaptation in everyday life. In Vietnam, where floods, salinization, heat stress, coastal erosion and climate-related displacement increasingly shape social life, this invisibility is not merely a policy omission. It reflects a deeper gendered public/private divide embedded within climate adaptation governance itself.

This paper asks: what would Vietnamese climate adaptation governance look like if it were rewritten through feminist law-making centered on care? Drawing on feminist legal method, feminist care ethics and vulnerability theory, the paper argues that existing adaptation planning, disaster governance and climate-related relocation frameworks tend to treat care as a private family responsibility rather than as public climate infrastructure. As a result, adaptation governance may protect land, housing and economic assets while failing to account for who cares for children, older persons, persons with disabilities, displaced households and damaged communities before, during and after climate disruption.

Methodologically, the paper combines feminist doctrinal analysis with prefigurative feminist law-writing. It first critiques the gendered assumptions embedded in adaptation planning, relocation policy and disaster recovery frameworks. It then proposes model feminist adaptation provisions that would: recognize unpaid care labour as part of climate resilience; require care impact assessments in relocation and disaster planning; guarantee childcare, healthcare and livelihood continuity in resettlement processes; incorporate women's lived experiences and community knowledge into adaptation decision-making; and address heightened risks of gender-based violence during climate-related displacement.

The paper contributes to feminist law-making scholarship by moving beyond gender mainstreaming approaches that merely seek to incorporate women into existing climate governance structures. Instead, it asks how the legal architecture of adaptation itself must be reimagined once care, dependency and social reproduction are recognized as foundational concerns of climate governance. By shifting from carbon to care, the paper develops a feminist approach to climate adaptation governance that treats relational survival and everyday care practices not as private matters, but as

central objects of legal protection and institutional design. This paper does not simply ask how women can be included in climate adaptation; it asks how adaptation governance must be rewritten once care is treated as climate infrastructure.

TOWARDS A GENDER-RESPONSIVE FRAMEWORK FOR DISASTER EVACUATION GOVERNANCE IN VIETNAM

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Natural hazards are intensifying across Southeast Asia, with Vietnam experiencing increasingly frequent and severe typhoons, floods, landslides, and sea-level rise, resulting in large-scale evacuations and prolonged displacement. Although evacuation is commonly framed as a temporary emergency response, it constitutes a form of displacement that generates enduring social, legal, and human rights consequences. Women are disproportionately affected throughout the evacuation process, facing heightened risks of gender-based violence, inadequate access to sexual and reproductive healthcare, unequal caregiving responsibilities, exclusion from decision-making, and limited access to information, shelter, and post-disaster recovery. These vulnerabilities are not merely incidental to disasters but are reproduced through evacuation governance, where gendered roles and responsibilities are continuously constructed and reproduced.

Although evacuation has attracted growing attention within disaster management scholarship, it remains conceptually underdeveloped as a question of legal protection and gender justice in climate displacement literature. In Vietnam, this theoretical gap is compounded by a fragmented legal framework in which disaster management, gender equality, healthcare, and social protection are governed through separate legal regimes, while gender-sensitive evacuation standards remain largely operational, discretionary, and non-binding.

This article, therefore, asks how Vietnam's disaster governance framework can be reconceptualised to better protect women's rights before, during, and after evacuations in the context of climate change and disaster. Drawing on doctrinal legal analysis and feminist socio-legal methodology, it examines Vietnam's disaster governance mechanisms and climate adaptation strategies with reference to CEDAW General Recommendation No. 37 and the Guiding Principles on Internal Displacement, while engaging with feminist legal theory and scholarship on anticipatory evacuation and disaster displacement.

The analysis demonstrates that the principal challenge lies not merely in fragmented regulation or implementation deficits but in the technocratic and patriarchal assumptions embedded within evacuation governance itself. Rather than functioning as a gender-neutral emergency response, Vietnam's evacuation governance reproduces socially constructed women primarily as caregivers and duty-bearers rather than autonomous rights holders. The article, therefore, proposes an integrated gender-responsive framework incorporating enforceable participation obligations, gender-sensitive shelter standards, accessible reproductive healthcare, trauma-informed evacuation procedures, and

long-term recovery mechanisms. In doing so, it reconceptualises evacuation governance as a continuing legal relationship that imposes gender-responsive obligations on the State.

ASSESSING LAW ON NATURAL DISASTER PREVENTION AND CONTROL THROUGH A FEMINIST LENS: INCLUDING MARGINALISED WOMEN IN LAW REFORM

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Abstract

This paper examines the legal framework governing natural disaster prevention and control through a feminist and intersectional lens, focusing on how disaster governance can better include the lived experiences and common knowledge of marginalised women in policy-making and law reform. Situated within broader discussions on intersectionality, inclusion, and marginalised voices in law, the study critiques the limitations of current disaster management frameworks in recognising the diverse vulnerabilities faced by women affected by climate change and natural disasters.

Using doctrinal legal analysis and comparative law approaches, the paper analyses the Law on Natural Disaster Prevention and Control 2013 and its implementing regulations to examine how vulnerable groups are legally identified and protected. It questions whether the legislative practice of exhaustively listing vulnerable groups can adequately capture the intersecting grounds of marginalised women, including those whose vulnerabilities arise from poverty, disability, ethnicity, geographic isolation, non-traditional family structures, or other forms of social exclusion. The paper further evaluates the legal and practical consequences of excluding unrecognised groups from existing classifications and argues that such approaches risk reinforcing structural inequalities within disaster governance.

Drawing on feminist legal theory and intersectionality, the study assesses whether the current framework reflects contemporary standards of gender equality, accessibility, and participatory governance. It further explores why women, particularly marginalised women, should be meaningfully included in disaster management policy-making and law reform processes, arguing that their lived experiences are essential for developing inclusive and effective disaster responses. Comparative case studies from other jurisdictions are employed to identify practical lessons from participatory and gender-responsive governance models that integrate women's community knowledge into the legal reform and policymaking of disaster and emergency response.

The paper argues that incorporating marginalised women into disaster governance is necessary to address gaps within current legal frameworks and to develop more equitable, climate-responsive, and inclusive policies that leave no one behind.

BETWEEN COMMITMENT AND TRANSFORMATION: THE LIMITS OF LEGAL MOBILIZATION AT THE INTERSECTION OF WOMEN'S ECONOMIC RIGHTS AND ENVIRONMENTAL JUSTICE IN VIETNAM AND NORWAY

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Abstract

International legal frameworks such as CEDAW, the Paris Agreement, and associated environmental conventions are among the most ambitious instruments feminist legal scholars and activists have mobilized to advance women's rights and environmental justice. Yet the record of implementation reveals a persistent and troubling pattern: states ratify, report, and formally comply, while the structural conditions that subordinate women to both economic precarity and environmental harm remain largely intact. This paper takes that gap as its central problem.

Drawing on a comparative study of Vietnam and Norway, two states with markedly different political systems yet convergent formal commitments to gender equality and environmental governance, the paper interrogates what is gained, and what is lost, when feminist advocates work through international legal frameworks rather than around them. It applies a stance of sceptical pragmatism: neither dismissing legal mobilization as co-optation, nor accepting formal compliance as evidence of genuine transformation.

The analysis is structured around three dimensions of legal failure. First, the paper examines how norm localization processes, drawing on Acharya's (2004) framework, systematically hollow out the transformative content of international norms as they are domesticated into national law. CEDAW's structural critique of patriarchal power, for instance, tends to be translated into technocratic gender mainstreaming mechanisms that leave underlying hierarchies undisturbed. Second, the paper interrogates climate governance frameworks through MacGregor's (2014) feminist ecological citizenship lens, showing how market-driven and individualist climate policy approaches - evident in both the Vietnamese green growth strategy and Norway's carbon trading mechanisms - effectively transfer responsibility from institutions to individuals, exempting economic actors from accountability while burdening women with adaptive labour. Third, drawing on Shove's (2010) analysis of social change theories, the paper critiques the neoliberal epistemologies embedded in gender-responsive climate frameworks, which tend to position women as resilient agents of behavioral change rather than as political claimants challenging the systemic causes of their disproportionate vulnerability.

Empirically grounded in analysis of CEDAW shadow reports, national climate adaptation strategies, gender-responsive environmental assessments, and interviews with policymakers and civil society actors in both countries, the paper does not conclude that legal mobilization is futile. Rather, following Taylor (2000) conception of the state as a "contested terrain," it argues that legal frameworks are sites

of ongoing struggle whose outcomes depend on the power of the actors deploying them and the coherence of the political coalitions behind them. The paper closes by proposing evaluative criteria for distinguishing legal reforms that genuinely shift power from those that perform transformation while preserving it - a contribution to both feminist legal theory and to the practical strategic choices facing women's rights advocates in climate-vulnerable communities. - Extraction, Slow Violence and Displacement -

REIMAGINING MARINE ENVIRONMENTAL PROTECTION LAW THROUGH FEMINIST LAW-MAKING: A VIETNAMESE AND INTERNATIONAL LAW PERSPECTIVE

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Abstract

Feminist law-making has emerged as a transformative methodology that not only critiques patriarchal legal structures but also actively reconstructs legal norms through inclusive and experience-based approaches. While feminist scholarship has extensively engaged with areas such as family law, labour, and violence, its application to environmental law, particularly marine environmental governance, remains underexplored. This paper addresses that gap by examining how feminist law-making can reframe marine environmental protection under both international law, especially the United Nations Convention on the Law of the Sea (UNCLOS), and Vietnamese domestic law.

The paper argues that existing marine environmental law frameworks are predominantly state-centric, technocratic, and ostensibly gender-neutral, yet they systematically marginalize the lived experiences of coastal communities, particularly women. Through a critical analysis of key legal instruments and selected case studies, including the Formosa environmental disaster, the paper demonstrates how environmental harm produces gender-differentiated impacts that remain largely invisible in legal reasoning, environmental impact assessments, and regulatory responses. Feminist legal methods, such as "asking the woman question" and the incorporation of situated knowledge, reveal structural blind spots in existing governance mechanisms. Moving beyond critique, the paper adopts a feminist law-writing approach to propose concrete legal reforms. It advances a set of prefigurative legal proposals, including integrating gender-sensitive environmental impact assessment procedures, implementing mandatory community participation mechanisms that foreground marginalised voices, and recognising local ecological knowledge in decision-making processes.

These proposals are framed not merely as policy recommendations but as examples of how law can be reimagined "as if" feminist principles of equality and inclusivity were fully embedded within legal systems. By bridging feminist legal theory with marine environmental governance, this paper contributes to ongoing debates on intersectionality, environmental justice, and the future of sustainable ocean governance. It ultimately argues that feminist law-making offers a powerful framework for shifting marine environmental law from a narrow, state-centric paradigm to a more inclusive, people-centred model capable of addressing both ecological degradation and social inequality.

WHAT THE LAW REFUSES TO SEE: GENDER, SLOW VIOLENCE, AND EXTRACTIVISM IN INDONESIA

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Abstract

The expansion of extractive industries in Indonesia, especially nickel mining under the banner of climate mitigation and energy transition, has destroyed and polluted ecosystem and local communities' means of livelihoods. However, sufferings from environmental pollution and degradation are unevenly distributed following the societal lines. Women who have been historically marginalised are the most vulnerable group in the society not only due their social location but also due to their biological features. A prolong exposure of contaminated water or food may accumulate and in turn form diseases slowly in women's bodies, a phenomenon termed "slow violence" by Rob Nixon to describe harm that is gradual, dispersed across time, and therefore rendered invisible by conventional legal frameworks.

In nickel-mining affected communities in Weda Bay, Halmahera, North Maluku Province, this slow violence takes distinctly gendered forms, including reproductive harm and miscarriages, harms that are biologically specific to women yet legally invisible. The Indonesian legal system remains silence in conceiving the difference notion of women bodies as victims of environmental pollution and degradation, not to mention to consider slow violence as gender-based violence. Neither environmental law nor gender-based violence legislation captures harms that are gradual, diffuse, and embodied, leaving women without legal standing or remedy.

This paper questions the gender-blindness of Indonesian law from a feminist jurisprudence perspective. It argues that this gender-blindness is not merely an oversight but a structural feature that reproduces patriarchal logics embedded in resource extraction governance. In doing so, it employs a socio-legal method involving interviews, documentary studies, and contextual legal analysis to expose the structural neglect of the Indonesian law toward women in the context of extractivism. Building on this critique, it proposes a feminist green victimology framework that centres bodily vulnerability, temporal harm and intersectionality as criteria for legal recognition in contributing a reconstructive dimension to feminist law-making by sketching what gender-responsive environmental legislation in Indonesia could look like. This paper enriches literature on feminist jurisprudence and green victimology by building its analysis and arguments based on materials and women experience in Indonesia, filling a gap in both fields where Southeast Asian contexts remain underrepresented.

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